

Cbi vs Jagmal Singh on 9 March, 2026

DLCT110004692022

IN THE COURT OF MS. JYOTI KLER
SPL. JUDGE (PC ACT), CBI-18
ROUSE AVENUE DISTRICT COURTS : NEW DELHI

Case No. CBI/44/2022
FIR No. : RC/DAI-2022-A-0004
u/Sec. 7 PC Act

Central Bureau of Investigation (CBI)

Vs.

Jagmal Singh
S/o Sh. Dayanand Deshwal
R/o H. No. 1850,
Sector-07, Bahadur Garh,
Distt. Jhajjar, Haryana - 124507

Permanent Address:
Village Dulehra, Post Dulehra,
Bahadurgah, Dist. Jhajjar,
Haryana.

.....Accused

Date of Institution	:	01.08.2022
Date on which Judgment Reserved	:	28.01.2026
Date of Judgment	:	09.03.2026
Decision	:	Convicted

CBI v. Jagmal Singh

Page 1/118

Free legal aid facilities for pursuing higher remedies against this judgment are available to the accused as per "The Legal Services Authorities Act, 1987". He may approach any of the following offices for seeking appropriate guidance:

1. Delhi State Legal Services Authority, 3rd Floor, Rouse Avenue District Court Complex, Pandit Deen Dayal Upadhyaya Marg, New Delhi - 110002. Help Line: 15100 & 1516; Phone No. 9870101337; E-mail: lae-dslsa@gov.in

2. Office of the Secretary - II, Central District Legal Services Authority, Front Office, Ground Floor, Rouse Avenue Courts Complex, Delhi.
Mobile No. 9810420894; E-mail: rouseavenue-dlsa@delhi.gov.in

3. Office of the Secretary, Delhi High Court Legal Services Committee, 34-38, Lawyers Chamber, Delhi High Court, New Delhi. Phone No. 011-23383418; E-mail: dhclsc-dhc@nic.in & hclsthebest@yahoo.co.in

JUDGMENT

Background:

1. Jagmal Singh (hereinafter 'the accused') is an ex-official of Delhi Police. He was posted as Sub-Inspector & Zonal Officer (ZO), Nangloi Traffic Circle, Delhi on 08.02.2022, the date of registration of the present case.

2. Sandeep Yadav (hereinafter 'the complainant') is a Transporter. 12 trucks registered in the name of his family members were being operated by him. He got this case registered in his capacity as caretaker of the trucks owned by his family members.

3. The instant case was registered on basis of the complaint dated 07.02.2022, which complainant had submitted to the CBI alleging that the accused was demanding bribe amount of Rs.24,000/- per month for allowing him to operate his trucks.

The Complaint:

4. Allegations are that the 12 trucks owned by the family members of the complainant used to be deloaded at Chanchal Park Stock, Delhi.

After deloading, these trucks used to be taken to Charkhi Dadri, Haryana, for loading, through Mundka (Delhi) & Bahadurgarh (Haryana). Accused was the ZO of Mundka area that fell under Nangloi Traffic Circle. He demanded a sum of Rs.2,000/- per truck from the complainant i.e. total Rs.24,000/-, per month, to allow the trucks to pass through Mundka, and threatened to challan & impound the trucks in case the bribe amount was not paid.

Verification Proceedings:

5. On receipt of complaint, it was marked to SI Pradeep for verification. Verification proceedings were conducted by SI Pradeep on 07.02.2022 itself in presence of SI Pawan Kumar, the complainant and an independent witness, namely, Sh. Jatin Gupta, Senior Manager, Punjab National Bank, Head Office, New Delhi (hereinafter 'TW1').

Preparation

6. The complainant was asked to approach the accused and seek time for payment of the bribe amount, in order to verify the complaint. A DVR make Sony (Black Colour) and a 16 GB new Strontium Micro SD Card were arranged by the CBI in order to record the conversation that would ensue between the complainant and the accused during the verification proceedings. Blankness of the memory card and DVR was ensured in presence of the complainant and IW1. The CBI team, consisting of Verification Officer SI Pradeep and SI Pawan Kumar, reached Mundka Industrial Area Metro Station along with the complainant and IW1.

Complainant was directed to meet the accused. Memory card was inserted in the DVR and introductory voice of IW1 was recorded in it. The DVR was kept in the left side pocket of the jacket of the complainant in 'switched on & hold' mode.

The Meeting

7. The complainant followed the instructions and met the accused near the red light of Mundka Industrial Area Metro Station. IW1 was also with him. The accused demanded the bribe amount of Rs.24,000/- during this meeting. Complainant requested the accused to reduce the bribe amount but the accused did not agree. The complainant sought time of a day to pay the bribe amount and left the spot.

Post Meeting

8. The incident was seen by IW1 and narrated to the Verification Officer later. Complainant also narrated the incident and handed over the DVR to the Verification Officer. The Verification Officer took out the memory card from the DVR and made a copy of it for investigation using write blocker. The memory card was then put in its original plastic case and the plastic case was put in its original cover. The cover was signed by IW-1, complainant & the Verification Officer and was marked as Q-1. This original cover was then put in a brown colour envelop and sealed with the brass seal of CBI. The brown envelop was also marked as Q-1. The Verification Memo was prepared that was signed by both the CBI officials, complainant and IW1.

Registration of Case:

9. Since the allegations stood verified, the Verification Officer recommended that a regular case u/Sec. 7 of the Prevention of Corruption Act, 1988 (hereinafter 'the PC Act') be registered. Accordingly, the instant FIR was registered by the CBI on 08.02.2022. The FIR was marked to Inspector Jaswinder Singh, CBI, ACB, New Delhi [hereinafter ' Trap Laying Officer' (TLO)] for laying of trap.

Pre-Trap Proceedings:

Constitution of Team

10. The TLO constituted a team of the CBI officials consisting of Insp. Ajay Kumar Singh, Insp. Umesh Kaushik, Insp. Satish Kumar Bana, Insp. Anil Kumar Singh, SI Pradeep, SI Pawan Lamba and SI Jai Prakash to lay the trap. Two independent witnesses were also made to join this team. They are IW1 and Sh. Varun Mittal, JSA, DDA, Vikas Sadan, New Delhi (hereinafter 'IW2'). Complainant too joined the trap team.

Briefing of Team & Preparation for Trap

11. The entire team assembled in the office of CBI. The DVR used in conducting the verification proceedings and the sealed memory card marked as Q-1 were handed over by the Verification Officer to the TLO. The brass seal of CBI was handed over to the TLO by IW1 because it had been given to him for safe custody after completion of the verification proceedings.

12. TLO briefed the team about purpose of the assembly and procedure that shall be followed for laying the trap.

13. The complainant produced a sum of Rs.24,000/- consisting of total 48 currency notes in the denomination of Rs.500/- each and handed those over to the TLO. The numbers of these currency notes were noted down and these were treated with phenolphthalein powder. A demonstration was thereafter given to the team by Inspector Umesh Kaushik with the help of IW-2 for explaining the purpose & significance of use of phenolphthalein powder. The treated currency notes were then kept in the right side front pocket of the jeans pant of the complainant by IW1 after taking his personal search to ensure that nothing was left with the complainant except his mobile phone. A trap kit for the spot of trap was also prepared. The team members who had touched the phenolphthalein powder or the currency notes laced with it, washed their hands properly.

14. A new memory card was inserted in the DVR after ensuring its blankness and introductory voices of both the independent witnesses were recorded in it. This DVR, along with the trap kit, a file cover consisting of original complaint, verification report, copy of FIR & Stationary material and some cash to meet the incidental expenses, were kept ready for taking to the spot of trap.

15. IW1 was instructed to act as a decoy/shadow witness and remain with the complainant at a safer distance in order to see the transaction of bribe and overhear the conversation, if possible. The complainant and IW1 were asked to give a signal to the TLO either by rubbing their head with both hands or by giving a missed call on the mobile number of the TLO or Insp. Anil Kumar Singh, as soon as the transaction of bribe was over.

16. A pre-trap memo was prepared with respect to the aforesaid proceedings which was signed by the entire team. The pre-trap memo was also kept in the file cover that was to be taken to the spot.

The Trap Proceedings:

Approaching the Accused

17. On reaching the vicinity of Mundka Industrial Area, complainant was asked to give a call from his mobile No. 9873101900 to the mobile number 9350902268 belonging to the accused by keeping his phone on the speaker mode. The call was made and complainant asked the accused about his location but the accused did not reply.

18. The accused called the complainant back after some time but the said call could not be taken.

19. The complainant thereafter again made a call to the accused by keeping his phone on speaker mode and the said call was recorded in the DVR. During this call the accused asked the complainant to meet him near Mundka Industrial Area. Hence, complainant was sent along with IW1 in his personal car to deliver the tainted money to the accused.

20. The complainant was instructed to hand over the money to the accused on his specific demand only and thereafter give the pre-decided signal immediately. The DVR was put in the inner left side of the jacket worn by the complainant.

21. The CBI team and IW2 placed themselves discreetly at different positions around the spot. The complainant along with IW1 reached the spot where the accused was sitting inside a grey colour Maruti Brezza Car. Complainant entered in the said car and IW1 stood nearby, outside the car.

Transaction of Bribe & Apprehension

22. The complainant negotiated the bribe amount with the accused inside the Brezza Car. The accused agreed to reduce the bribe amount to Rs.22,000/-. Complainant handed over the said amount to the accused which he accepted with his right hand and kept it in the storage space near gear lever of the Car. The entire conversation between the complainant and the accused was recorded in the DVR. The complainant came out of the Car after transaction of bribe was complete and a missed call was then given on the mobile number 9953109195 belonging to Insp. Anil Kumar Singh, by IW1 from his mobile number 8888801428. The entire trap team was alerted and they ran towards the Maruti Brezza Car.

23. The accused was asked to come out of the Car by the TLO and other team members after disclosing their identity. The accused however did not follow the instructions and instead accelerated the Brezza Car during which he hit Insp. Anil Kumar Singh and caused injuries to him. One CBI vehicle chased the Brezza Car and apprehended the accused near Metro pillar No. 674 at Rohtak Road. In the meanwhile, DVR was also taken back from the complainant and was switched off.

Recovery of the Bribe Money

24. The remaining team of CBI was informed on apprehension of accused and they reached near Metro pillar no. 674 at Rohtak Road. The TLO challenged the accused regarding demand and

acceptance of bribe. The accused got perplexed and did not answer any question. When the CBI team asked about the bribe amount, the accused pointed towards the storage space of the gear lever of the Brezza car. The bribe amount was recovered from that place by IW2 on the directions of TLO.

25. A sodium carbonate solution with water was prepared in a clean glass tumbler on recovery of bribe amount and the accused was asked to dip his right hand in that solution in order to detect presence of phenolphthalein. On dipping of the right hand of the accused, the solution turned pink. This solution was transferred in a clean glass bottle which was capped, covered with a white piece of cloth and tied with a tag. This tag was sealed with the brass seal of CBI. A white paper label was pasted on the bottle and marked as "RHW".

26. The storage space from where currency notes were recovered was also wiped with a cloth and this cloth too was dipped in a clean glass tumbler containing sodium carbonate solution. The solution again turned pink and was transferred in another glass bottle which was sealed in the similar manner as RHW. This second solution was marked as "SPW".

27. The bribe money in the sum of Rs.22,000/- recovered from the gear lever of the Brezza Car was counted. The numbers of 44 currency notes were tallied with the numbers mentioned in the pre-trap memo, all the matching numbers were single ticked and signed by IW1 & IW2. The recovered trap money was kept in an envelop which was sealed and marked as "Trap Money of Rs.22,000/- recovered from the accused".

28. The remaining sum of Rs.2,000/- was recovered from the right side front jeans pocket of the complainant by IW2 on the directions of TLO. The numbers of these four currency notes were also tallied with the numbers mentioned in the pre-trap memo and were found matching. These numbers were double ticked and signed by IW1 & IW2. The sum of Rs.2,000/- was thereafter sealed in an envelop marked as "Amount of Rs.2,000/- recovered from the complainant".

29. The Brezza Car used by the accused was searched and a separate search memo was prepared.

Post-Trap Proceedings:

House Search

30. An authorization u/Sec. 165 Cr.P.C. was given to Insp. Sanjay Malhotra through special messenger by the TLO asking him to search the house of the accused. Search was conducted and a list prepared.

Site Plan

31. Two rough site plans, one of the spot where transaction of bribe took place, and another of the spot from where the accused was apprehended, were prepared by Insp. Satish Kumar Bana. Respective position of all members of the trap team were depicted in these site plans. The site plans were signed by the TLO, complainant, both the independent witnesses and the maker Insp. Satish

Kumar Bana.

Seizure of Memory Card

32. The memory card was taken out from the DVR. An investigation copy was prepared using write blocker and memory card was put back in its original paper cover marked as Q-2. The original cover was signed by the TLO, IW1 & IW2 and was then put in a brown envelop. This envelop was also marked as Q-2, was signed by the TLO, IW1 & IW2 and thereafter was sealed.

Lodging of Complaint regarding the Accident

33. The entire team thereafter went to the Police Station Mundka where a complaint was lodged about conduct of the accused regarding hitting of Insp. Anil Kumar with Brezza Car. A FIR bearing No. 339/2022 dated 08.02.2022 was registered against the accused on the basis of the said complaint. Inspector Anil Kumar was taken for medical examination and his right hand was got plastered due to injuries.

Arrest & Personal Search

34. The CBI team was given a room in PS Mundka for carrying out the further proceedings. During these proceedings, the accused was arrested and his personal search was carried out. Intimation of arrest of the accused was given to his wife through Insp. Sanjay Malhotra who had gone to the residence of the accused for conducting house search.

35. A mobile phone make One Plus Model KB2001 having EMEI-1- 864721053471872 and IMEI-2-864721053471864 carrying SIM card of Vodafone & Jio, was recovered during the personal search of the accused which was seized by the TLO. Few vehicle challans were also recovered which were handed over to the local police.

Recording of Specimen Voice

36. Accused and complainant were asked to give their specimen voice to which they voluntarily agreed.

37. A new memory card was opened and using the DVR its blankness was ensured. Introductory voices of IW1 and IW2 were recorded in this memory card first. Thereafter, specimen voice of the accused was recorded. This followed the recording of concluding voices of IW1 and IW2. The memory card was then taken out and kept in its original cover. It was marked as S-1 and was sealed in a brown colour envelop, which was signed by IW1, IW2, accused and the TLO.

38. The specimen voice of complainant was then recorded in another new 16 GB memory card in the similar fashion and the said memory card was sealed and marked as S-2.

39. The DVR used in the proceedings was then sealed in a brown colour envelop and marked as DVR.

Documentation

40. A recovery memo (detailing the trap & post trap proceedings) was prepared and signed by the entire trap team. Specimen of brass seal were taken in ink and lak.

Investigation:

41. After completion of trap proceedings, investigation was handed over to Insp. Sanjay Malhotra.

42. During investigation, the copies of Q-1 and Q-2 related to verification & trap proceedings, which were prepared using the write blocker before sealing the said two memory cards, were played in the official laptop of CBI and Voice Identification-cum-Transcription Memos were prepared qua both Q-1 & Q-2 in presence of IW1, IW2 and the complainant. The complainant had identified his own voice and voice of the accused while the independent witnesses had identified their respective voices.

43. The investigation copies of Q-1 and Q-2 were also played in presence of Sh. Satinder Singh, Inspector, Todapur Traffic Unit, Delhi and one independent witness, namely, Sh. Ramanpal Singh, Manager, Bank of Baroda, Ashok Vihar Branch, New Delhi (hereinafter 'IW3'). Sh. Satinder Singh identified the voice of accused in both Q-1 and Q-2 in presence of IW3 and Voice Identification-cum-Transcription memo was accordingly prepared.

44. The mobile phone seized from the accused was sent to the FSL for extracting of mobile data. CAF, CDR and the Cell ID Charts of the mobile numbers belonging to the accused i.e. 9350902268 (Vodafone) and 8168984937 (Jio), were also collected by the IO. Similar details were collected qua the mobile number 9873101900 (Airtel) belonging to the complainant. The CDRs of the Vodafone mobile number belonging to the accused and Airtel mobile number belonging to the complainant were analysed and it was found out that on 08.02.2022 there were two telephonic conversations between them.

45. The RHW and SPW, two bottles containing handwash of the accused and spacewash of the Brezza car respectively, collected during the trap proceedings, were also sent to the FSL which confirmed presence of phenolphthalein in both the washes.

46. The investigating officer obtained sanction regarding prosecution of the accused from the competent authority i.e. Additional Commissioner of Police, Traffic (Headquarter), Delhi.

47. The chargesheet was prepared on the basis of aforesaid investigation and IO concluded that the material collected during investigation disclosed commission of a cognizable offence punishable u/Sec. 7 of the PC Act by the accused.

Court Proceedings:

Pre-Trial Stage

48. IO filed the chargesheet in the Court and also sought some time for carrying out further investigation on the ground that the Voice Examination Report qua the accused and copy of data & report with respect to the mobile phone seized from him, were still awaited.

49. Court took cognizance of the offence on basis of the first chargesheet & summoned the accused.

50. The Voice Examination Report was filed in the Court on 08.02.2023 after filing of the first chargesheet. It was opined in the Voice Examination Report that the sample voice marked as S-1 and the questioned voices Q-1 and Q-2 marked as Q-1(2)(J) & Q-2(4)(J) to Q-2(6)(J) were the probable voices of speaker Jagmal Singh i.e. the accused. It was also opined that the specimen voice S-2 and questioned voices marked as Q-1(2)(S) & Q-2(4)(S) to Q-2(6)(S) were the probable voices of speaker Sandeep Yadav i.e. the complainant.

51. The supplementary chargesheet was filed by the IO later in the year 2023. It was revealed in the supplementary chargesheet that a spiral note book that was seized from the house of the accused during search proceedings, had been sent to the FSL for examination of handwriting. However, the expert opined that the said diary contained handwriting of multiple persons and it was not possible to express any opinion about the writers on basis of the specimen handwritings of various persons that were collected by the CBI during investigation. The report received from Computer Forensic Science Division of CFSL also revealed that no incriminating material was found from the mobile phone of the accused.

52. On basis of the aforesaid two reports, IO concluded in the supplementary chargesheet that there was no material on record to suggest that any other official of Nangloi Traffic Circle was involved with the accused in demand and acceptance of bribe.

53. Complete copy of the chargesheet, supplementary chargesheet and documents were supplied to the accused in compliance of Section 207 Cr.P.C. (now Sec. 230 BNSS).

54. The accused was heard on the point of charge.

55. Vide Order dated 13.04.2023, it was held that a prima facie case for the offence punishable u/Sec. 7 of the PC Act was made out against the accused.

56. The charge was accordingly framed against the accused on 24.04.2023 to which he pleaded not guilty and claimed trial.

The Trial: Evidence of Prosecution

57. The prosecution examined total 27 witnesses in support of its case.

58. These consist of material witnesses who were part of the trap proceedings and IO as well as formal witnesses like, the expert witnesses, nodal officers, witnesses from the transport department of various States, witnesses from the traffic police, the sanctioning authority and some public witnesses.

59. Details of the witnesses of the prosecution are as below:-

S.No. Name of Examined If cross- Role Description Witness as examined Material Witnesses 59.1. Sandeep PW-2 Yes. He is the complainant. He Yadav proved his complaint, verification proceedings related to the complaint, pre-

trap proceedings, the trap proceedings and post-trap proceedings. He also identified the specimen and questioned voices of himself and the accused.

59.2. Jatin Gupta	PW-4	Yes.	He is IW1. He had acted as shadow witness during the verification and the trap proceedings. Hence, he proved the aforesaid proceedings as well as pre-trap & post-trap proceedings. He also identified the specimen voices of accused and the complainant.
59.3. Varun Mittal	PW-6	Yes.	He is IW2. He was part of the trap team and has proved the pre-trap proceeding, trap proceedings and post-trap proceedings. He also identified the specimen voices of accused and the complainant.
59.4. Insp. Pradeep (the then SI)	PW-11	Yes.	He is the verification officer who had verified contents of the complaint filed by PW-2. He was also part of the trap team and has proved the pre-trap, trap and post-trap proceedings.
59.5. Insp. Jaswinder Singh	PW-15	Yes.	He is the TL0, who headed the trap team. He also has proved the pre-trap, trap and post-trap proceedings.
59.6. Insp. Sanjay Malhotra	PW-24	Yes.	He deposed about the investigation undertaken by him.
59.7. V.	B. PW-8	Yes.	He is the Deputy Director

Expert Witnesses

Ramteke

and Scientist (Chemistry)

				from CFSL Delhi. He examined the bottles containing right hand wash of the accused and storage space wash of the Brezza car. Both these exhibits tested positive for phenolphthalein as per his report.
59.8.	Mahesh Kumar Jain	PW-16	Yes.	He is the Scientist from CFSL, Chandigarh, working in the field of Forensic Voice Examination and Forensic Physical Examination of crime exhibits. He had compared the voices in Q-1 & Q-2 with the voices in S-1 & S-2. He opined that both Q-1 & Q-2 contained the voices of speakers in S-1 and S-2, wherein S-1 is the specimen voice of the accused & S-2 is the specimen voice of the complainant.
			Nodal Officers	
59.9.	Pawan Singh	PW-1	Yes.	He is the Nodal Officer from Vodafone Idea Ltd. who produced the record pertaining to mobile No. 9350902268 belonging to the accused.
59.10.	Rajiv Vashist	PW-5	Yes.	He is the Nodal Officer from Bharti Airtel Ltd. who proved the record pertaining to mobile No. 9873101900 belonging to the complainant.
59.11.	Prakash Saxena	PW-7	Yes.	He is the Nodal Officer from Reliance Jio Infocomm Ltd. who proved the record pertaining to mobile No. 8168984937 belonging to the accused.

Witnesses from the Transport Department 59.12. Sanjeev PW-19 Yes. He was summoned to prove Kumar the data related to registration of vehicles No. HR55W3222 & HR55S0345.

59.13. Vikas PW-21 Yes. He was summoned to prove Jain the Notification bearing No. F.19 (183)/Tpt./Sectt./2017/70257 dated 03.08.2021.

59.14. Moatula	PW-22	Yes.	She was summoned to prove the data related to registration of vehicle No. NL01L8103; NL01AB0248; NL01AB0247; NL01AB1284; NL01AB1280; & NL01AB1279.
59.15. Sukhbir Singh	PW-25	Yes.	He was summoned to prove the data related to registration of vehicles No. HR63C5021; HR63D6201; & HR63C2051.
59.16. Amit Kumar	PW-26	Nil.	He was summoned to prove the data related to registration of vehicle No. HR31S1450.

Witnesses from the Traffic Police 59.17. ASI Amit PW-3 Nil. He was summoned to prove Kumar the service record pertaining to the accused that included details related to his joining in Delhi Police, his promotions, salary drawn by him and his dismissal from the service.

59.18. Insp. PW-9 Yes. He was summoned to prove Kuldeep the record related to transfer Kumar of the accused to Nangloi Tiwari Traffic Circle, his duty roster & timings on 07.02.22 & 08.02.22 and his dismissal.

59.19. Pankaj PW-10 Nil. He proved the DD entries Kumar related to joining of the accused in Nangloi Traffic Circle, departure & arrival of the staff of Nangloi Traffic Circle on 07.02.22 & 08.02.22, laying of trap and dismissal of the accused.

59.20. HC PW-13 Yes. He was on duty in the Manoj Nangloi Traffic Circle on Kumar 08.02.22 and as per duty roster was performing his duty at Mundka Red Light point. Accused was his Zonal Officer on that day. PW-13 deposed about the said facts and also about the officials who were performing duty on Mundka Red Light point along with him on 08.02.22.

59.21. HC Sumit PW-14 Yes. The Maruti Brezza car bearing registration No. (also re- HR-31S-1450 from the examined by storage space of which the the bribe amount was recovered prosecution) at the instance of the accused, belonged to this witness. He deposed that his Brezza car was borrowed by the accused on 08.02.22 at around 2:00/2:30 PM for taking rest.

59.22. Insp. Ram PW-17 Yes. He was summoned to prove Niwas the DD entries dated 22.10.21, 07.02.22 & 08.02.22 related to the Nangloi Traffic Circle. He also deposed that no entry time of

heavy goods vehicle in Mundka Metro & surrounding areas was 07:00 AM to 11:00 AM & 05:00 PM to 11:00 PM.

59.23. Insp. PW-18 Yes. He is the official of Delhi Satinder Police, posted in the Traffic Singh Department. During his tenure in Nangloi Traffic Circle, accused was posted there as Sub-Inspector. This witness had identified the voice of the accused during investigation, from the audio recordings in memory cards Q-1 & Q-2, & he deposed about this in the Court.

Sanctioning Authority 59.24. Shibesh PW-23 Yes. He had granted sanction for Singh prosecution of the accused while serving as Additional Commissioner of Police (Traffic), Head Quarters, Delhi.

Other Public Witnesses 59.25. Ravi PW-12 Yes. He is elder brother of the Yadav complainant. He deposed that out of total 12 trucks, 5 trucks bearing No. NLO1AB1279; HR63C2051;

NLO1AB1280; HR55S0345;

& HR63D6201 were registered in his name and 02 bearing no. HR55W3222 & NLO1AB1284 were registered in the name of his wife but operation of these trucks was being managed by his brother i.e. the complainant.

59.26. Akash PW-18 Yes. He was summoned to prove Sinha the information related to (Since two entry and exit of commercial witnesses vehicles into Delhi from were Haryana.

numbered as PW-18 due to inadvertent error, he will be referred as PW-18A henceforth) 59.27. Ravi Goel PW-20 Nil. He is an official of MCD who was summoned to prove the information related to entry & exit of commercial vehicles that was provided by M/s Tecsidel to the MCD through PW18A.

60. The following documents were proved by the prosecution through the aforesaid witnesses:

S.No. Description of Doc. Exhibit No. Proved Relevant the Doc. No. by Deposition
60.1. FIR D-1 Ex.PW15/1 PW-15 Signature of SP Akhilesh Kumar Singh at point 'A' identified.

60.2.	Complaint dated 07.02.22 filed by the complainant.	D-2	Ex.PW2/A	PW-2 & PW-11	PW-2 identified the complaint & his signature at point 'A'. PW-11 identified endorsement of the then SP, marking the complaint to him for verification, at
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60.3.	Verification Memo dated 07.02.2022	D-3	Ex.PW2/B	PW-2 PW-4 & PW-11	point 'B'. Their own signatures identified by PW-2, 4 & 11 at points A, B & C respectively.
60.4.	Pre-Trap Memo dated 08.02.2022	D-4	Ex.PW2/C	PW-2 PW-4 PW-6	Their own signatures identified by
				PW-11 & PW-15	PW-2, 4, 6, 11 & 15 at points A to E respectively.
					PW-15 also identified signatures of other team members at points F to K.
60.5.	Recovery Memo dated 08/09.02.2022	D-5	Ex.PW2/D	PW-2 PW-4 PW-6 PW-11 & PW-15	Their own signatures identified by PW-2, 4, 6, 11 & 15 at points A to E respectively.
60.6.	Two Site plans, one of the spot where bribe was transacted and another of the spot where accused was apprehended, dated 08.02.2022.	D-6	Ex.PW2/E (Colly)	PW-2 PW-4 PW-6 & PW-15	Their own signatures identified by PW-2, 4, 6 & 15 at points A to D respectively.
60.7.	Arrest-cum-Personal Search Memo qua the accused.	D-7	Ex.PW4/H	PW-4 PW-6 & PW-15	Their own signatures identified by PW-4, 6 & 15 at points A-C respectively.
					PW-15 also identified signature of accused at

60.8.	Handing/Taken Over Memo dated 09.02.2022 with respect to the Challans recovered during personal search of the accused.	D-8	Ex.PW15/3	PW-15	point 'D'. PW-15 identified his signature at point 'A'. This document is regarding handing over of traffic challans recovered from the accused to the Nangloi Circle Office of Traffic Police, Delhi.
60.9.	Car Search Memo dated 08.02.2022 regarding search of grey colour Maruti Brezza Car from which the bribe money was recovered.	D-9	Ex.PW4/I	PW-4 PW-6 & PW-15	This document lists down the articles recovered from the Car. PW-4, 6 & 15 identified their signatures at point A to C respectively, on this Memo.
60.10.	Letter dated 03.03.2022 addressed to CBI by ACP (Traffic) (HQ), Delhi forwarding transfer Order & other related documents in	D-11	Ex.PW9/2	PW-9	PW-9 identified signature of Smt. Urmila Sharma, Inspector (Admn.), Traffic at point A.
60.11.	Transfer / Posting Order dated 12.09.2019 & 08.10.2021 and computer generated details of different	D-11	Ex.PW9/3 (Colly)	PW-9	respect of the accused. Signature of Sh. Ved Prakash, ACP (Traffic), HQ-I identified at point A on all the pages by PW-9;

postings in
Traffic Unit
pertaining to
the accused;

Duty chart of
Feb-March,
2022;

Staff statement
at a glance;

dated
22.10.2021
(joining of
accused in
Nangloi Traffic
Circle);

dated 07.02.22
(regarding
assigning of
duty to the
accused at
Mundka point);

dated 07.02.22
(regarding
releasing of
accused from
duty);

dated 08.02.22
(departure of
accused to
Mundka point
with HC Sonu,
Ct. Amit & Ct.
Gagan);

dated 08.02.22
(regarding
information of
trap of accused
received at
Tikri Border);

PW-10
identified his
signature &
stamp at point
'B' on page
48, 72 & 73.

dated 08.02.22
(regarding
recording of
information of
trap of
accused);

dated 08.02.22
(regarding
receipt of FIR

from PS
Mundka);

dated 12.02.22
(regarding
receipt of
dismissal Order
of the accused).

60.12.	Letter dated 07.03.2022 sent to the CBI by the Additional Commissioner of Police (Traffic), HQ, Delhi, forwarding requisite documents in respect of accused.	D-12	Ex.PW9/1	PW-9 & PW-10	Signature of Smt. Urmila Sharma, Inspector (Admin.), Traffic, HQ, New Delhi, identified at point 'A'.
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60.13.	Service Roll of the accused.	D-12	Ex.PW3/A	PW-3	Signature of Sh. Ved Prakash, ACP (Traffic), HQ at point 'B' & of PW-3 at point 'A' identified.
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Date of joining
of accused in
Delhi Police
was stated to
be 01.05.1982
as per roll.

60.14. Record pertaining to promotion of	D-12 Ex.PW3/B PW-3	Signature of Sh. Ved Prakash, ACP
accused to the post of Head Constable.		(Traffic), HQ at point 'B' & of PW-3 at point 'A' identified. Date of promotion of accused to the post of Head Constable was stated to be 07.03.1996.
60.15. Record pertaining to promotion of accused to the post of ASI.	D-12 Ex.PW3/C PW-3	Signature of Sh. Ved Prakash, ACP (Traffic), HQ at point 'B' & of PW-3 at point 'A' identified. Date of promotion of accused to the post of ASI was stated to be 21.02.2014.
60.16. Record pertaining to promotion of accused to the post of SI (ad hoc) & his pay level.	D-12 Ex.PW3/D PW-3	Signature of Sh. Ved Prakash, ACP (Traffic), HQ at point 'B' & of PW-3 at point 'A' identified. Date of promotion of accused to the post of SI (ad hoc) was stated to be 26.07.2019 and his pay scale w.e.f.

					01.07.2021 was stated to be level 6 with basic pay of 55200.
60.17.	Details of D-12 salary drawn (Page by the accused 15) during the financial year 2021-22	Ex.PW3/E	PW-3		Signature of Sh. Ved Prakash, ACP (Traffic), HQ at point A identified.
60.18.	Dismissal D-12 Order bearing (Page no. 16-19) 720-765/HAP-T (P-I/HQ), pertaining to the accused, dated 11.02.2022.	Ex.PW3/F (Colly)	PW-3		Signature of Sh. Ved Prakash, ACP, Traffic (HQ) at point B on each page and of Sh. Dinesh Kumar, HC (Ministerial) at point 'A' on the last page identified.
60.19.	DD No. 03, 04, 05, 10, 18, 23, 25, 26 & 28 all dated 07.02.2022 (the date of verification of the complaint) reflecting the	D-13	Ex.PW10/1 (Colly)	PW-10	His own signature & stamp regarding verification of entries identified at point A by PW-10
	duty point (Mundka) of accused and other traffic police officials in Nangloi Traffic Circle.				
60.20.	DD No. 3, 13 & 19, all dated 08.02.2022 (the date of laying of trap) reflecting the duty point (Mundka) of accused and other traffic police officials of Nangloi	D-14	Ex.PW10/2 (Colly)	PW-10	His signature & stamp regarding verification of entries identified at point A by PW-10.

	Traffic Circle.				
60.21.	Transcription of Audio Recording marked as Q-1.	D-15 (Page 3 - 6)	Ex.PW2/F	PW-2 PW-4 PW-6 & PW-24	PW-2, 4, 6 & 15 identified their signatures at point A to D respectively.
60.22.	Voice Identification - cum Transcription Memo related to to Q-1 & Q-2 dated 24.02.2022.	D-15 (Page - 1-2)	Ex.PW2/G	PW-2 PW-4 PW-6 & PW24	PW-2, 4, 6 & 15 identified their signatures at point A to D respectively.
60.23.	Transcription of Audio Recording marked as Q-2.	D-15 (Page 7-11)	Ex.PW2/H	PW-2 PW-4 PW-6 & PW24.	PW-2, 4, 6 & 15 identified their signatures at point A to D
60.24.	Voice Identification - cum Transcription Memo dated 28.02.2022.	D-16	Ex.PW18/1	PW-18 & PW24	respectively. PW-18 & 24 identified their signatures at point A & B.
60.25.	Transcription of Audio Recording marked as Q-1.	D-16	Ex.PW18/2	PW-18 & PW-24	PW-18 & 24 identified their signatures at point A & B.
60.26.	The transcript of Q-1.	D-16	Ex.PW18/3	PW-18 & PW-24	PW-18 & 24 identified their signatures at point A & B.
60.27.	Forwarding letter dated 21.02.2022 vide which the washes exhibits related to this case were forwarded by CBI to the CFSL for chemical examination to detect presence of phenolphthalei n powder,	D-17	Ex.PW24/1	PW-24	Signature of the then SP Sh. K. S. Lochab identified at point A, on the letter & the certificate.

alongwith the authorization certificate.

60.28. Chemical Examination as Report dated 24.02.2022 bearing no. D-18 Ex.PW8/1 PW-8 Both washes marked as RHW & SPW gave positive test for

CFSL - phenolphthalei
2022/C-149. n as per report on which PW-8 identified his signature and stamp at point A & B respectively.

60.29. Forwarding Letter dated 07.03.2022 vide which the Memory Cards marked as Q-1; Q-2; S-1; S-2 and the DVR were forwarded by the CBI to the CFSL for voice comparison, alongwith the authorization certificate by the then SP Sh. K. S. Lochab. D-19 Ex.PW24/2 PW-24 Signature of the then SP Sh. K. S. Lochab identified at point A, on the letter & the certificate.

60.30. Letter dated 08.03.2022 alongwith CDR, CAF and Cell ID chart with respect to mobile No. 8168984937 certificate u/Sec. 65B of the Indian Evidence Act, D-20 Ex.PW7/1 (Colly) PW-7 The mobile no. 8168984937 is registered in the name of accused while mobile no. 9350902268 does not belong to Reliance Jio. PW-7 identified his

1872, received
by the CBI

signature and
stamp on the

from the Nodal
Officer of
Reliance Jio
Infocomm Ltd.

documents at
point 'A'. The
CDR suggest
that on
07.02.2022 the
accused had
called on
mobile no.
8708484894 at
around
09:07:24 and
spoke till
09:10:29. His
location at that
time was near
Khasra no.
33/4, Village
Tikri Kalan,
Delhi-110041.
This call is
unconnected to
the present
case.

- | | | | | |
|---|------|---------------------|------|--|
| 60.31. The letter dated
09.03.2022
vide which
CAF & CDR
of mobile no.
9350902268
were forwarded
to the CBI by
Vodafone Idea
Ltd. | D-21 | Ex.PW1/A | PW-1 | PW-1
identified his
signature at
point 'A'. |
| 60.32. Application
form for
mobile No.
9350902268. | D-21 | Ex.PW1/B
(Colly) | PW-1 | The mobile no.
9350902268
was registered
in the name of |
| 60.33. Certificate
u/Sec. 65B of
the Indian
Evidence Act
in support of
Ex.PW1/B
(Colly) | D-21 | Ex.PW1/C | PW-1 | accused.
It certifies
genuinity of
the application
form
Ex.PW1/B
(Colly). PW-7
identified his
signature at
point 'A'. |
| 60.34. CDR of mobile
No.
9350902268
for the period | D-21 | Ex.PW1/D
(Colly) | PW-1 | It reflects that
on 08.02.2022
at 14:56:56
and 15:32:11 |

from
07.02.2022 to
08.02.2022.

two incoming
calls from
mobile no.
9873101900
were received
on mobile no.
9350902268
and location of
the latter
mobile number
was Village
Mundka (near
Government
School,
Mundka) at
that time.
PW-1
identified his
signature &
stamp on this
document at
point 'A'.

60.35. Certificate D-21 Ex.PW1/E PW-1
u/Sec. 65B of
the Indian

It certifies
genuinity of
the CDR

Evidence Act.

Ex.PW1/D.

PW-1
identified his
signature at
point 'A'.

60.36. Forwarding D-22 Ex.PW5/A PW-5
Letter dated (Colly)
07.03.2022
received by
CBI from
Bharti Airtel
Limited
alongwith
Customer
Application
Form, 2 copies
of Aadhar Card
of the
complainant, 2
Certificates
u/Sec. 65-B of
the Indian
Evidence Act,
CDR, and Cell
ID Chart,
pertaining to

Signature and
stamp of
Bharti Airtel at
point 'A' on
every
document
identified by
PW-5.
Documents
reflect that the
mobile no.
9873101900
was registered
in the name of
complainant.
Two calls were
made from this
number on
08.02.2022 at
14:56:57 &
15:32:12 to

mobile number
9873101900
(showing tower
address of the
respective
location and
certificate
u/Sec. 65-B of
the Indian
Evidence Act
relating to the
CDR).

mobile no.
9350902268.
Location of
this phone
during first
call was at
Mundka, near
Amar Colony,
Delhi and
during second
call it was at
Mundka, near
Khasra no. 614

and gate no. 2
of Mundka
Metro Station,
Delhi.

60.37. Letter dated D-24 Ex.PW22/1 PW-22
21.04.2022
sent to the CBI
by RT0,
Kohima,
Nagaland vide
which details
of 06 vehicles
operated by the
complainant,
which were
registered in
Nagaland, were
forwarded.

Signature of
RT0 at point A
identified by
PW-22.

60.38. Particulars of D-24 Ex.PW22/2 PW-22
06 Vehicles (Colly)
registered in
Nagaland.

Signature &
stamp of RT0
identified by
PW-22 at point
A on each
page. These
documents
reflect that
vehicles no.
NL01L8103,
NL01AB0248
&
NL01AB0247
were
registered in
the name of
Nisha w/o
complainant;
vehicle no.
NL01AB1284

was registered

in the name of
Pooja Yadav
and vehicles
no.

NL01AB1280

&

NL01AB1279

were

registered in
the name of
Ravi Yadav.

60.39.	Letter dated 12.04.2022 sent to the CBI by the DT0- cum-Secretary, RT0, Bahadurgarh forwarding information with respect to vehicle no. HR63C5021; HR63D6201; and HR63C2051.	D-25	Ex.PW25/1 [also Ex.PW24/9 (Colly)]	PW-24 & PW-25	Endorsement of Incharge Malkhanna at point 'A' & signature of RT0 & dealing clerk at point 'B' & 'C' identified by PW-24 & PW-25 respectively.
60.40.	Registration details of vehicle no. HR-63C-5021.	D-25	Ex.PW25/2 [also Ex.PW24/9 (colly)]	PW-24 & PW-25	Signature & stamp at point 'A' identified by PW-25. Vehicle is registered in the name of Nisha w/o complainant.
60.41.	Registration details of vehicle no. HR-63D-6201	D-25	Ex.PW25/3 [also Ex.PW24/9 (colly)]	PW-24 & PW-25	Signature & stamp at point 'A' identified by PW-25. Vehicle is registered in the name of Ravi Yadav, brother of complainant.
60.42.	Registration details of vehicle no.	D-25	Ex.PW25/4 [also	PW-24 & PW-25	Signature & stamp at point 'A' identified

HR-63C-2051			Ex.PW24/9 (colly)]		by PW-25. Vehicle is registered in the name of Ravi Yadav, brother of complainant. Signature of RT0 at point A identified by PW-19.
60.43.	Letter dated 27.04.2022 sent to the CBI by RT0, Gurugram forwarding details of vehicle no. HR-55W-3222 & HR-55S-0345	D-26	Ex.PW19/1	PW-19	
60.44.	Particulars of vehicles bearing No. HR-55W-3222 & HR-55S-0345.	D-26	Ex.PW19/2	PW-19	Signature of RT0 at point A identified by PW-19. Vehicle no. HR55W3222 is registered in the name of Pooja Yadav (sister-in-law of the complainant)
60.45.	Certificate u/Sec. 65B of Indian Evidence Act in respect of registration certificate of vehicle No. HR55W3222	D-26	Ex.PW19/3	PW-19	& vehicle no. HR55S0345 is registered in the name of Ravi Yadav, brother of the complainant. Signature of RT0 at point A by PW-19.
60.46.	Certificate u/Sec. 65B of Indian Evidence Act in respect of	D-26	Ex.PW19/4	PW-19	Signature of RT0 at point A identified by PW-19.

	vehicle No. HR-55S-0345.				
60.47.	Letter dated 27.04.2022 received by the CBI from RT0, Jind.	D-27	Ex.PW26/1 [also Ex.PW24/10 (Colly)]	PW-24 & PW-26	Endorsement of Incharge Malkhana at point A & signature of RTA at point B identified by PW-24 & 26 respectively.
60.48.	Registration details of vehicle No. HR-31S-1450 (Maruti Brezza)	D-27	Ex.PW26/2 [also Ex.PW24/10 (Colly)]	PW-24 & PW-26	Signature & stamp at point 'A' identified by PW-26. Vehicle is registered in the name of
60.49.	Certificate u/Sec. 65B of the Indian Evidence Act with respect to the registration certificate of vehicle no. HR-31S-1450.	D-27	Ex.PW26/3 [also Ex.PW24/10 (Colly)]	PW-24 & PW-26	Sumit (PW-14). Signature & stamp at point A identified by PW-26.
60.50.	Forwarding letter dated 11.03.2022 alongwith certified copy of personal bio-data of the accused received by PW-24 from Inspector/Admn./Traffic.	D-28	Ex.PW24/11 (Colly)	PW-24	Documents reflect that the Disciplinary & Appointing Authority as well as authority competent to remove the accused from service was DCP/HQ/Traffic. Accused held the designation of SI (Executive).
60.51.	Seizure memo dated 07.03.2022.	D-29	Ex.PW24/3	PW-24	PW-24 identified his signature at point 'A'. Service record of accused was

60.52. Seizure memo dated 03.03.2022.	D-29	Ex.PW24/4	PW-24	seized vide this memo. PW-24 identified his signature at point 'A'.
60.53. Seizure memo dated 09.03.2022.	D-29	Ex.PW24/5	PW-24	Some DD entries were seized vide this memo. PW-24 identified his signature at point 'A'. Documents received from Vodafone Idea Ltd. were seized vide this memo.
60.54. Seizure memo dated 11.03.2022.	D-29	Ex.PW24/6	PW-24	PW-24 identified his signature at point 'A'. Documents received from Bharti Airtel Limited were seized vide this memo.
60.55. Seizure memo dated 09.03.2022.	D-29	Ex.PW24/7	PW-24	PW-24 identified his signature at point 'A'. Copies of RCs of 12 Trucks operated by complainant were seized vide this memo.
60.56. Letter dated 26.05.2022 written to the CBI by MCD	D-30	Ex.PW20/1	PW-20	Signature of Admin. Officer (Toll Tax) at point A

(Toll Tax Department).

identified by PW-20. Information about entry &

					exit of some vehicles from Delhi & route Mundka and nearby areas for the year 2021-22 was sent to CBI vide this letter, after requisitioning the same from SDMC's contractor M/s Tecsidel India Pvt. Ltd., GHV (India) Pvt. Ltd. & Sahakar Global Ltd.
60.57.	E-mail dated 09.02.2022 vide which information related to the entry and exit of 12 vehicles bearing No. HR55W3222; HR55S0345; NL01LB8103; NL01AB0249; NL01AB0248; NL01AB0247; NL01AB1284;	D-30	Ex.PW18/1	PW-18A	Signature of AR at point A on each page of the data identified by PW-18A. Record does not reflect any movement of the vehicles from Tikri around Jan./Feb. 2022. The movement has been made
	NL01AB1280; NL01AB1279; HR63C5021; HR63D6201; & HR63C5051 was provided by M/s Tecsidel to the MCD (Toll Tax Department)				through Tikri after the date of registration of this case. Movements before that are from Bakarghad, Darola and Dhansa Border which fall in the South West area near Najafgarh, Delhi.
60.58	Certificate	D-31	Ex.PW18/2	PW18A	His signature

- u/Sec. 65B of the Indian Evidence Act with respect to the data provided to the MCD (Toll Tax Department) by M/s Tecsidel.
- and stamp at point A identified by PW18A.
- 60.59. Letter dated 09.06.2022 sent by Tecsidel to the CBI, forwarding a certificate u/Sec. 65B of the Indian Evidence Act, 1872. D-31 Ex.PW18/3 PW18A His handwriting on the letter at point A and signature at point B identified by PW18A.
- 60.60. Letter dated 20.05.2022 sent to the CBI D-33 Ex.PW21/3 PW-21 Signature of Deputy Commissioner
- by the Transport Department of GNCT Delhi forwarding notification. (Sectt.) identified by PW-21 at point A.
- 60.61. Notification No. F.19 (183)/Tpt./Sectt./2017/70257 dated 03.08.2021 pertaining to the Transport Department. D-33 Ex.PW21/1 PW-21 Signature & stamp of certifying officer identified at point A. It reflects that entry of HGV, MGV & LGV was prohibited on Rohtak Road from Tikri Border to Peeragarhi between 7:00 AM to 11:00 AM and 5:00 PM to 11:00 PM.
- 60.62. Certificate u/Sec. 65-B of Indian D-33 Ex.PW21/2 PW-21 His signature as PCO (Sect.) identified by

	Evidence Act, 1872 with respect to the notification dated 03.08.2021				PW-21 at point 'A'.
60.63.	Forwarding letter dated 07.07.2022 vide which CBI had	D-34	Ex.PW24/8	PW-24	The letter reflects that Insp. Anil first went for consultation in
	received the medical documents pertaining to the treatment given to Insp. Anil Kumar at the Max Hospital, Vaishali, Ghaziabad after he had been hit by the Brezza car.				Orthopaedic on 09.02.22. He was later admitted on 14.02.22 & underwent medical procedure for Triceps Tendon Repair with Bone Chip Fixation.
60.64.	Certificate u/Sec. 65B of the Indian Evidence Act, 1872, received by CBI from the Transport Authority, Bahadurgarh, Haryana.	D-35	Ex.PW25/5 [also Ex.PW24/9 (Colly)]	PW-24 & PW-25	Certificate is with respect to registration details of vehicle no. HR63D6201. Signature and stamp of Secretary / RTA, Jhajjar at point A & of dealing hand at point B identified by PW-25.
60.65.	Certificate u/Sec. 65B of the Indian Evidence Act, 1872, received by CBI from the Transport Authority, Bahadurgarh,	D-35	Ex.PW25/6 [also Ex.PW24/9 (Colly)]	PW-24 & PW-25	Certificate is with respect to registration details of vehicle no. HR63C5021. Signature and stamp of Secretary /

	Haryana.				RTA, Jhajjar at point A & of dealing hand at point B identified by PW-25.
60.66.	Certificate u/Sec. 65B of the Indian Evidence Act, 1872, received by CBI from the Transport Authority, Bahadurgarh, Haryana.	D-35	Ex.PW25/7 [also Ex.PW24/9 (Colly)]	PW-24 & PW-25	Certificate is with respect to registration details of vehicle no. HR63C2051. Signature and stamp of Secretary / RTA, Jhajjar at point 'A' & of dealing hand at point 'B' identified by PW-25.
60.67.	Order dated 12.05.2022 whereby sanction to prosecute the accused was granted.	D-36	Ex.PW23/1	PW-23	His signature identified by PW-23 at point A on each page.
60.68.	Forensic Voice Examination Report dated 18.01.2023.	D-37	Ex.PW16/1	PW-16	His signature, stamp & initials identified by PW-16 at point A, B & C respectively. Report opined that Q-1 & Q-2 contained
60.69.	Letter dated 08.10.2024 addressed to the Court by RT0 Kohima, Nagaland	-	Ex.PW22/3	PW-22	probable voices of the accused & the complainant. Signature of RT0, Kohima at point A identified by PW-22; Information pertaining to

				vehicle no. NL01AB0249 at point 'B' also identified, which states that details of this vehicle could not be extracted as a NOC for its transfer to RT0, Dausa, Rajasthan was issued on 17.03.2022.
60.70. Certificate u/Sec. 65B of Indian Evidence Act with respect to the data provided by RT0, Kohima, Nagaland.	-	Ex.PW22/5 (Objected to during recording of testimony but objection not pressed at the stage of final arguments).	PW-22	Signature of RT0 Kohima, Nagaland at point A, identified by PW-22.
60.71. Ownership	-	Ex.PW22/4	PW-22	NL01L8103
		details of trucks bearing No. NL01L8103; NL01AB1284; NL01AB1280; & NL01AB1279.	(Colly)	registered in the name of Nisha & transferred to Ravinder Kumar on 16.08.2023; NL01AB1284 registered in the name of Pooja Yadav; and NL01AB1280 & NL01AB1279 registered in the name of Ravi Yadav.
60.72. Final report (chargesheet) dated 26.07.2022 filed in the Court by	--	Ex.PW24/12	PW-24	Signature of IO and SP, ACB, CBI, identified by PW-24 at points A & B

PW-24.

respectively.

61. The following material objects/articles have been relied upon by the prosecution in support of their case:-

S.No. Exhibit No. Description of the Article Proved by

61.1 Ex.P-3 Memory card marked as PW-2, PW-4 & PW-6.

S-1 containing specimen voice of the accused.

61.2 Ex.P-4 Memory card marked as PW-2, PW-4, PW-6 & (also S-2 containing specimen PW-15.

Ex.PW15/2) voice of the complainant.

61.3 Ex.P-7 Memory card marked as PW-2, PW-4, PW-16 Q-1. (signature identified at point D) & PW-18 (identified voice of accused).

61.4	Ex.P-8 (Colly) [also Ex.PW4/D (Colly)]	Four currency notes PW-2, PW-4 & PW-6 marked with double tick in Ex.PW2/C, recovered from the complainant.	
61.5	Ex.P-9 (Colly) [also Ex.PW4/B (Colly)]	44 currency notes recovered from the accused bearing numbers which were single ticked in Ex.PW2/C.	PW-2, PW-4, PW-6 & PW-11.
61.6.	Ex. P-10	Glass bottle containing right hand wash of the accused and marked as RHW.	PW-2, PW4 (signature identified at point A), PW-6 (signature identified at point B), PW-8 (signature identified at point C) & PW-11 (signature identified at point D).
61.7.	Ex.P-11	Glass bottle containing	PW-2, PW-4 (signature

storage space wash of the identified at point A), Maruti Brezza Car PW-6 (signature marked as SPW. identified at point B), PW-8 (signature identified at point C) & PW-15 (signature identified at point D) 61.8. Ex.P-12 DVR make Sony used to PW-2, PW-4 (signature record voices during pre-identified at point A), trap & trap proceedings PW-6 (signature as well as specimen identified at point B), voices marked as Ex. PW-15 (signature DVR. identified at point C) & PW-16 (signature identified at point D).

61.9.	Ex.P-15	Memory card marked as Q-2 containing conversation between	PW-2, PW-4, PW-6, PW-15, PW-16 (signature identified at
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61.10.	Mark X	complainant and the accused during the trap proceedings. Brass seal of the CBI used in pre-trap & trap proceedings & handed over to PW-4 post-trap.	point D) & PW-18 (identified voice of the accused). PW-4.
61.11.	Ex.PW8/3 (Colly)	The 2 cloth wrappers taken out from Ex.PW8/2 (envelope yellow in colour).	PW-8 who identified his signature at point 'A' on both the cloth wrappers.

62. The following envelopes and packing material used for putting/storing aforesaid articles were also referred by the prosecution in support of their case:-

S.No. Exhibit No. Description Proved by 62.1. Ex.P-1 Envelope marked as PW-2, PW-4 & PW-11, who Q-1 in CO-07/2022 in identified their signature at which memory card point A, B & C respectively. Q-1 was kept.

62.2. Ex.P-2 Original cover PW-2, PW-4, PW-11 & marked as Q-1 in PW-16, who identified their CO-07/2022 signature at points A to D. 62.3. Ex.P-5 envelope in which PW-2, PW-4, PW-6 & memory card marked PW-15, who identified their as S-2 (Ex.P-4) was signature at points A to D kept. respectively.

62.4. Ex.P-6 Packing cover of the PW-2, PW-4, PW-6, PW-15 memory card marked & PW-16 who identified their as S-2 (Ex.P-4) signature at points 'A' to 'E' respectively.

62.5. Ex.P-13 Packing material of PW-2, PW-4, PW-6, PW-15 the memory card & PW-16, wherein last four marked as Q-2 identified their signatures from points A to D. 62.6. Ex.P-14 Envelope in which PW-2, PW-4 (signature memory card marked identified at point A), PW-6, as Q-2 (Ex.P-15) was (signature identified at point kept. B), PW-15 (signature identified at point C) & PW-16 (signature identified at point D).

62.7.	Ex.PW4/A	Envelope containing 44 currency notes [Ex.P-9 (Colly) / Ex.PW4/B (Colly)] recovered from the accused.	PW-4 (signature identified at point A), PW-6 (signature identified at point B) & PW-11 (signature identified at point C).
62.8.	Ex.PW4/C	Envelope containing 4 currency notes [Ex.P-8 (Colly)/Ex.PW4/D (Colly)] recovered from the complainant.	PW-4 (Signature identified at point A), PW-6 (signature identified at point B) & PW-15 (signature identified at point C).
62.9.	Ex.PW4/E	Envelope containing	PW-4 (signature identified at

		memory card marked as S-1 (Ex.P-3)	point A), PW-6 (signature identified at point B), PW-15 (His own signature identified at point C & signature of accused identified at point D) & PW-16 (signature identified at point E).
62.10.	Ex.PW4/F (Colly)	Packing material of memory card marked as S-1 (Ex.P-3).	PW-4 (signature identified at point A), PW-6 (signature identified at point B), PW-15 (His own signature identified at point C & signature of accused identified at point D) & PW-16 (signature identified at point E).
62.11.	Ex.PW4/G	Envelope in which DVR (Ex.P-12) was put.	PW-4 (signature identified at point A), PW-6 (signature identified at point B), PW-15

(signature identified at point C) & PW-16 (signature identified at point D).

62.12. Mark X Brass seal used to PW-4 seal the exhibits collected from the spot.

62.13. Ex.PW8/2 One yellow colour PW-8 who identified his envelope sealed with signature on envelope at the seal of 'PSO point 'A'.

Chemistry CFSL
NEW DELHI,
containing 2 cloth
wrappers which were
removed from the
glass bottles during
chemical
examination.

62.14. Ex.PW16/2 One yellow colour PW-16 sealed envelope from which the brown colour envelope (Ex.P-1) containing Ex.P-2 (original packing cover) and Ex.P-7 (Memory Card Q-1) were taken out.

62.15. Ex.PW16/3 One yellow colour PW-16 sealed envelope from which the brown colour envelope (Ex.P-14) along with Ex.P-13 (packing cover) and Ex.P-15 (Memory Card Q-2) were taken out.

62.16. Ex.PW16/4 One yellow colour PW-16 sealed envelope from which brown colour envelope (Ex.PW4/E) containing Ex.PW4/F (Packing) and Ex.P-3 (Memory Card S-1) were taken out.

62.17 Ex.PW16/5 One yellow colour PW-16 sealed envelope from which brown colour envelope (Ex.P-5) containing Ex.P-6 (Packing Cover) and (Memory Card S-2) were taken out.

62.18. Ex.PW16/6 One yellow colour PW-16 sealed envelope from which brown colour envelope (Ex.PW4/G) containing Ex.P-12 (DVR) was taken out.

63. The following documents were put to the aforesaid material witnesses by the prosecution but were not admitted in evidence:-

S.No. Description of the Doc. Mark No. Referred in the Doc. No. Deposition of 63.1
The copies of D-23 Mark X PW-2.

registration {The 12 trucks are certificates of 12 bearing No. trucks.

HR-63C-5021;

NL-01L-8103;

NL-01AB-0249;

NL-01AB-0248;

NL-01AB-0247 (all in the name of Nisha w/o complainant);

HR-55W-3222;

NL-01AB-1284 [all in

the name of Pooja
Yadav (sister-in-law of
the complainant)];
HR-63D-6201;
HR-55S-02345;
NL-01AB-1280;
NL-01AB-1279; &
HR-63C-2051 (all in
the name of brother of
the complainant)).
These were being
operated by the
complainant.
PW-15

63.2. FIR bearing No.
339/2022 dated
08.02.2022
registered at PS
Mundka.

D-10 Mark
PW15/A

[This FIR is with
respect to the injuries
allegedly caused to
Insp. Anil Kumar
(member of the trap
team) by the accused by
accelerating the Brezza

63.3.	The Complaint filed by PW-15 at PS Mundka.	D-10	Mark PW15/B	Car]. PW-15 (On the basis of this complaint, FIR Mark PW15/A was registered).
63.4.	Statement of PW-12 recorded u/Sec. 161 Cr.P.C.	--	Mark PW12/D A	PW-12 (PW-12 was confronted with Mark PW12/DA to prove omission of the fact that the complainant had purchased 5 trucks in his name & 2 trucks in the name of his wife, which he stated during his examination-in-chief, but it was not part of his statement recorded u/Sec. 161 Cr.P.C.)
63.5.	Order No. 73/12/2005 dated 15.12.2005 issued by the Central Vigilance Commission, Govt. of India regarding 'Action against public servants, serving as witness, but turning hostile in trap and other cases of CBI'.	--	Mark DX PW-4	(Witness denied that this circular was shown to him by the prosecution before coming in the witness box).
63.6.	Medical documents received from Max Hospital, Vaishali, Ghaziabad	D-34	Mark PW24/A (Colly)	PW-24 (These documents reflect about injuries the person of Inspector

Anil Kumar
treatment given to him)

64. The following documents were put to the witnesses by the accused during their cross-examination:-

S.No. Description of Doc. Exhibit No. Proved Relevancy the Doc. No. by 64.1 The forwarding -- Ex.PW8/D1 PW-8 Name of the letter dated (OSR) official of ACB, 21.02.22 CBI who brought received from exhibits to CFSL the CBI by the is not mentioned CFSL along in this document.

with
authorization

(PW-8
volunteered to

certificate vide
which RHW &
SPW were
forwarded for
examination.

state that the
exhibits were
brought by
Suresh Chand
Jat, PC, CBI,
which fact was
noted in his
report Ex.
PW8/1 from the
chain of custody
sheet which was
part of his office
file that he was
carrying along).

Ld. Defence
counsel did not
propose to check
the file or make
custody sheet a
part of the
Court's record.

64.2	Worksheet prepared by PW-8 during examination of RHW & SPW in the Laboratory.	--	Ex.PW8/D-2 (OSR)	PW-8	The worksheet gives detailed analysis of the samples examined in CFSL, alongwith Spectrum Peak Pick Report / Spectrum Point Pick Report of RHW, SPW & standard solution.
64.3	Copy of the	--	Ex.	PW-16	This document

forwarding
letter dated
07.03.22

PW16/DA
(Colly)
(OSR)

reflects
endorsement of
CFSL at the first

received by the
CFSL from
CBI alongwith
authorization
certificate vide
which Q-1,
Q-2, S-1, S-2
and DVR were
sent for
forensic
examination.

page showing
that the sealed
parcels were
received in
physics division
on 08.03.22.

64.4. Authorization
letter dated
06.02.2025 by
RT0, Kohima,
Nagaland, in
favour of Smt.
Moatula, A0,
to represent
RT0 in the
Court.

-- Ex.
PW22/D1

PW22 Signature of
RT0 Kohima
identified by
PW-22 at point
A.

64.5. Search list
containing
details of
properties
seized by the
CBI during
search
proceedings
carried out in
the house of
accused.

-- Ex.
PW24/DA

PW24 PW-24 had
carried out this
search &
identified his
signature at point
'A'. None of the
articles seized
vide this list are
relevant for this
judgment.

Statement of Accused:

65. All the incriminating circumstances were put to the accused u/Sec.

313(1)(b) Cr.P.C. He was also given liberty to file written statement as per Section 313 (5) Cr.P.C. however accused did not avail this opportunity.

66. Accused denied all the incriminating circumstances put to him during recording of his statement u/Sec. 313(1)(b) Cr.P.C. He stated that the trap money & handwash were planted upon him and he was falsely implicated in this case. Accused also pleaded that the documents and evidence used against him had been fabricated. He defended himself stating that whenever he booked commercial vehicles for traffic violations, he was threatened by various leaders of Transport Unions. The vehicles of complainant having been registered outside Delhi, were not permitted to ply on the roads of Delhi. The complainant was apprehensive that his vehicles shall be booked for traffic violation.

Hence, he implicated him falsely in the present case. The accused also stated that the expert reports relied upon by the prosecution were false. It is the case of the accused that the sanction for prosecution was granted against him by an incompetent authority because it is the Commissioner of Police who was authorized to grant sanction against him and not the Additional Commissioner of Police. The accused stated that he was promoted to the post of SI by the Commissioner of Police and not by the Additional Commissioner of Police, hence, the sanction for prosecution granted against him by the Addl. CP was invalid.

Defence Evidence

67. The accused summoned and examined five witnesses in order to prove his defence. Details of these witnesses are as below:-

S.No. Name of Witness Examined If cross- Role Description as examined 67.1.
Rishikant Gaur DW-1 Yes He was summoned for proving the RTI reply dated 12.10.2023 bearing No. TPT/AS/STA/2023/RT I/93746 sent to him by the Transport Department : STA Branch, Govt. of NCT of Delhi.

67.2. WHC Sangita	DW-2	Yes	She was summoned to prove the RTI reply dated 12.10.2023 bearing No. 607/2023/6011/RTI Cell/Traffic (Head Quarter), New Delhi, sent to the accused from the office of PIO : (Traffic) : Head Quarter, Delhi.
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67.3. SI Sunil Kumar DW-3 Yes He had produced the original DD register from Nangloi Traffic Circle and Burari Traffic Circle and proved various DD entries.

67.4. Er. Chumbenthung Odyuo	DW-4	Yes	He was examined through Video Conference to prove the RTI reply dated 22.07.2024 sent to the accused vide letter bearing No. RT0-K/Estt.-5/Part-I/2 017/965-67 by the office of RT0, Kohima, Nagaland.
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67.5. Amit Saharan	DW-5	Yes	He was summoned to
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prove the RTI reply bearing No. 269/RTA

dated 10.06.2024 sent to the accused by RTA, Jhajjar at Bahadurgarh, Haryana.

68. The following documents were proved by the witnesses of defence during the recording of their testimonies:

S.No. Description Doc. Exhibit No. Prove Relevant of the Doc. No. d by Deposition

68.1. RTI reply -- Ex.DW1/A DW-1 Transport dated Department 12.10.2023 disclosed vide this bearing No. reply that other TPT/AS/ST states registered A/2023/RTI/ vehicles were not 93746 allowed to be operated locally in Delhi. Signature of PIO identified at point A & B. 68.2. RTI reply -- Ex.DW2/A DW-2 Copy of promotion dated (3 sheets) Order dated 12.10.2023 06.08.2019, vide bearing No. which the accused 607/2023/60 was promoted to 11/RTI the rank of SI (Ex.) Cell/Traffic w.e.f. 26.07.2019, (Head was sent through Quarter), this reply.

New Delhi.

68.3.	DD No. 27 dated 31.01.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/A (OSR)	DW-3 Accused records about threats given to him by one Deepak claiming to be owner of vehicle no. RJ-40GA-3078 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.4.	DD No.24 dated 01.02.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/B (Colly) (2 sheets) (OSR)	DW-3 Accused records about threats given to him by one Deepak claiming to be owner of vehicle no. DL-1LX-0715 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.5.	DD No.37 dated 03.02.2020 pertaining to Nangloi Traffic	--	Ex.DW3/C (Colly) (2 sheets)	DW-3 Accused records about threats given to him by one Fauzi claiming to be owner of vehicle no. DL-1M-8190

	Circle.				that had been challaned & having membership of Transport Association.
68.6.	DD No.36 dated 10.02.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/D (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Deepak claiming to be owner of vehicle no. RJ-40GA-1550 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.7.	DD No.34 dated 11.02.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/E (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Pradeep claiming to be owner of vehicle no. HR-55Q-2586 that had been challaned by the accused for traffic violation.
68.8.	DD No.35 dated 20.12.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/F (Colly) (2 sheets) (OSR)	DW-3	Accused record that he was threatened by occupant of vehicle no. DL-1LY-3639 when he had booked it for traffic violation.
68.9.	DD No.31 dated 23.12.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/G (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Brij Mohan claiming to be owner of vehicle no. RJ-404A-3078 that had Brijmohan mark and had been challaned by the accused for traffic violation.
68.10.	DD No.24 dated 05.01.2020 pertaining to Nangloi	--	Ex.DW3/H (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Deepak claiming to be owner of vehicle

Traffic
Circle.

no. DL-1LR-5696
that had Om
Motors mark and
had been challaned
by the accused for

- | | | | | | |
|--------|--|----|--|------|--|
| 68.11. | DD No. 32
dated
06.01.2020
pertaining to
Nangloi
Traffic
Circle. | -- | Ex.DW3/I
(OSR) | DW-3 | traffic violation.
Accused records
about threats given
to him by one
Pradeep claiming
to be owner of
vehicle no.
RJ-02GB-2958 that
had been challaned
by the accused for
traffic violation. |
| 68.12. | DD No. 27
dated
07.01.2020
pertaining to
Nangloi
Traffic
Circle. | -- | Ex.DW3/J
(Colly)
(2 sheets)
(OSR) | DW-3 | Accused records
about threats given
to him by one
Deepak claiming to
be owner of vehicle
no. UP-14HT-1120
that had Om
Motors mark and
had been challaned
by the accused for
traffic violation. |
| 68.13. | DD No.31
dated
11.01.2020
pertaining to
Nangloi
Traffic
Circle. | -- | Ex.DW3/K
(Colly)
(2 sheets)
(OSR) | DW-3 | Accused records
that he was
threatened by one
Yadav when he
challaned vehicle
no. HP-12M-4081
for traffic violation. |
| 68.14. | DD No.15
dated
13.01.2020
pertaining to
Nangloi
Traffic
Circle. | -- | Ex.DW3/L
(OSR) | DW-3 | Accused records
that he was
threatened &
manhandled by one
Ajay & Aman
when he challaned
vehicle no.
HP-9CAQ-7097
for traffic violation. |
| 68.15. | DD No.34
dated
21.11.2020
pertaining
Burari | -- | Ex.DW3/M
(OSR) | DW-3 | Accused records
about threats given
to him by one
Harish Gupta
claiming to be |

Traffic Circle.				owner of vehicles no. UP-84T-7238; DL-1M-1070; & UP-25DT-2227 that had been challaned by the accused for traffic violation.
68.16. DD No.38 dated 25.02.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/N (OSR)	DW-3	Accused records that he was threatened by Taj Mohammad for booking vehicle no. UP-25DT-2227 for traffic violations.
68.17. DD No.36 dated 27.02.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/O (Colly) (3 sheets) (OSR)	DW-3	Accused records about threats given to him by one Deepak & Nain Singh claiming to be owners of vehicle no. DLIMA0405 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.18. DD No.29 dated 03.03.2020 pertaining to Nangloi	--	Ex.DW3/P (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Deepak claiming to be owner of vehicle
Traffic Circle.				no. UP-17AT-3031 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.19. DD No.21 & 24 dated 17.03.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/Q (Colly) (3 sheets) (OSR)	DW-3	Accused records about threats given to him by one Brij Mohan claiming to be owner of vehicle no. UP-23T-9870 that had Brijmohan mark and had been challaned by the accused for traffic violation. He also

				records about threats by one Hawa Singh for booking vehicle no. DL-1LX-6804 for violations.
68.20.	DD No.41 dated 17.03.2020 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/R (OSR)	DW-3 Accused records that he was threatened by the occupants of vehicle bearing No. DL-4ER-5044 when it was booked for traffic violation.
68.21.	DD No.24 dated 04.09.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/S (OSR)	DW-3 Accused records that he was threatened by the driver of vehicle no. DL-8CA-6845 when it was booked for traffic violation.
68.22.	DD No. 16 dated 13.09.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/T (OSR)	DW-3 Accused records about threats given to him by one Nain Singh claiming to be owner of vehicle no. HR-55AB-8815 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.23.	DD No. 24 dated 15.09.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/U (Colly) (5 sheets) (OSR)	DW-3 Accused records that he was threatened by a mob of 200 people when vehicle no. TN-37-DW-0682 was booked for traffic violations.
68.24.	DD No. 31 dated 27.11.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/V (Colly) (3 sheets)	DW-3 Accused records about threats given to him by one Brij Mohan claiming to be owner of vehicle no. UP-21BN-6426 that had Brijmohan

					mark and had been challaned by the accused for traffic violations.
68.25.	DD No. 30 dated 30.11.2019 (inadvertently noted as 11.09.2019	--	Ex.DW3/W (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Brij Mohan claiming to be owner of vehicle no. HR-73A-5841
	in the testimony) pertaining to Nangloi Traffic Circle.				& HR-63C-8587 that had Brijmohan mark and had been challaned by the accused for traffic violation.
68.26.	DD No. 34 dated 03.12.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/X (Colly) (2 sheets) (OSR)	DW-3	Accused records about threats given to him by one Brij Mohan claiming to be owner of vehicle no. UP-22AT-1469 that had Brijmohan mark and had been challaned by the accused for traffic violation.
68.27.	DD No.32 dated 19.12.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/Y (OSR)	DW-3	Accused records that he was threatened by driver Mohd. Wazir when vehicle no. DL-1LT-3891 was challaned for traffic violation.
68.28.	DD No.31 dated 05.11.2019 pertaining to Nangloi Traffic Circle.	--	Ex.DW3/Z (OSR) (2 Sheets)	DW-3	Accused records about threats given to him by one Deepak claiming to be owner of vehicle no. RJ-40GA-1096 that had Om Motors mark and had been challaned by the accused for traffic violation.
68.29.	DD No.34 dated 13.08.2019	--	Ex. DW3/AA (OSR)	DW-3	Accused records that he was threatened by the

					pertaining to Nangloi Traffic Circle.				driver vehicle no. DL-8CP-0997 was challaned for traffic violation.
68.30.	DD No.9 dated 17.08.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AB (OSR)	DW-3	Accused records that he was threatened by driver when vehicle no. DL-1LY-7219 was challaned for traffic violation.				
68.31.	DD No.18 dated 04.06.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AC (OSR)	DW-3	Accused records that he was threatened by a person who was following vehicle no. HR55U114 in a Brezza Car when the said vehicle was challaned for traffic violation.				
68.32.	DD No.17 dated 10.03.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AD (OSR)	DW-3	Accused records that he was threatened by the driver when vehicle no. HR-20W-5577 was challaned for traffic violation.				
68.33.	DD No.25 dated 27.09.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AE (OSR)	DW-3	Accused records that he was threatened by the occupants when vehicle no. HR-12AJ-3404 was challaned for traffic violation.				
68.34.	DD No.23 dated 28.09.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AF (Colly) (3 sheets) (OSR)	DW-3	Accused records that he was threatened by driver when vehicle no. HR-55Q-0527 was challaned for traffic violation.				
68.35.	DD No.28 dated 30.09.2019 pertaining to	--	Ex. DW3/AG (OSR)	DW-3	Accused records that he was threatened on mobile phone again				

	Nangloi Traffic Circle.				for booking vehicle no. HR-55Q-0527 for traffic violation.
68.36.	DD No.33 dated 07.10.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AH (Colly) (3 sheets) (OSR)	DW-3	Accused records that he was threatened by the driver of vehicle no. HR-56A-7038 challaned for traffic violation.
68.37.	DD No.33 dated 14.10.2019 pertaining to Nangloi Traffic Circle.	--	Ex. DW3/AI (Colly) (3 sheets) (OSR)	DW-3	Accused records that the driver threatened him in the name of Mundka Transport Association when vehicle no. UP-32HN-1836 was challaned for traffic violation.
68.38.	RTI reply dated 22.07.2024 bearing No. RT0-K/Estt. -5/Part-1/201 7/965-67.	--	Ex.DW4/1	DW-4	RT0, Kohima, replied that a vehicle must be produced before Registering Authority for inspection, to be

issued with a
fitness certificate at
the time of
registration as well
as during
subsequent
renewals as per
Sec. 56 of the
Motor Vehicles
Act, 1988.
Signature of RT0
identified at point
A.

68.39.	RTI reply bearing No. 269/RTA dated 10.06.2024	--	Ex.DW5/1	DW-5	Same reply, as in Ex.DW4/1, given by RT0, Bahadurgah. Signature of RT0 identified at point A.
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Final arguments

69. On completion of trial, final arguments were advanced by the prosecution and defence.

70. The detailed arguments of each side shall be discussed in the latter part of this judgment, while appreciating the evidence and discussing reasons.

71. Briefly stating, Sh. Ashutosh Tripathi, Ld. Sr. PP for CBI, contented that the prosecution has been able to prove its case beyond reasonable doubt. He argued that the accused was charged for the offence punishable u/Sec. 7 of the Prevention of Corruption Act, 1988 (hereinafter the 'PC Act') for which the prosecution was required to prove 'obtainment / acceptance' of bribe. It was contended that by proving the demand & acceptance of bribe, prosecution has been able to prove 'obtainment' and thus the accused is liable to be convicted. Ld. Sr. PP relied upon the testimony of PW-2, PW-4, PW-6, PW-11 & PW-15 in support of his contentions and stated that these eye witnesses had corroborated each other in material particulars. He also referred to Section 20 of the PC Act and contended that once demand and acceptance was proved, the intention will have to be presumed by the Court and it was for the accused to rebut the said presumption which he had failed to do. Ld. Sr. PP reiterated that the accused was liable to be convicted for the offence charged.

72. Sh. Sanjay Gupta, Ld. Defence Counsel opposed contentions of the prosecution vehemently. Defence argued that the allegation of demand was bereft of material particulars as no date & time of first demand was mentioned in the complaint. There were material contradictions in the testimonies of PW-2, PW-4, PW-6, PW-11 & PW-15. The documents relied upon by the prosecution were ante-dated and ante-time. Those documents were not proved as per law. Site plan was hit by Section 162 Cr.P.C. No videography of the so called verification or trap proceedings were conducted by the CBI which was in violation of Rule No. 14.16 of CBI (Crime) Manual-2005. Mere recovery of money was not sufficient. The handwash of the complainant was not obtained by the trap team in order to show that he had handled the tainted money during the trap proceedings. No such document was brought on record which could suggest that the complainant had been authorized by his family members to operate and manage the trucks owned by them. In support of these contentions, Ld. Defence Counsel relied upon various judgments which are noted as below:-

- (i) Joginder Singh Malik v. CBI 1;
- (ii) Mir Mustafa Ali Hasmi v. The State of A.P.2;
- (iii) M. Sambasiva Rao v. The State of Andhra Pradesh3;
- (iv) Om Prakash v. State NCT of Delhi 4;
- (v) Ram Avtar v. State5;
- (vi) Subodh Anand v. C.B.I.6;
- (vii) S. K. Bhatia v. Central Bureau of Investigation7;
- (viii) Karnail Singh v. State of Punjab8;
- (ix) Sumit Kumar Verma v. State (Govt. of NCT of Delhi)9;
- (x) Savita Alias Babbal v. State of Delhi10;

- (xi) Raosaheb v. State of Maharashtra¹¹;
- (xii) Nepal Singh Rawal v. CBI¹²;
- (xiii) Abdul Rashid Ansari v. State of U.P.¹³
- (xiv) C.M. Girish Babu v. CBI, Cochin, High Court of Kerala¹⁴;
- (xv) Suraj Mal v. State (Delhi Administration)¹⁵.

73. Ld. Defence counsel also contended that the investigation in this case was not carried out properly by the IO. The investigation was biased and defective, benefit of which the accused was entitled to have. Ld. Counsel contended that the arrest procedure laid down by the Hon'ble Apex Court in D.K. Basu v. State of West Bengal ¹⁶ was not followed that raised a doubt on the story of prosecution.

74. Ld. Defence counsels further contended that the prosecution had failed to prove foundational facts related to the present case, hence, the 1 2022/DHC/005401.

2 2024 (3) RCR (Criminal) 562.

3 2025 INSC 868.

4 2014 (1) C.C. Cases (HC) 161.

5 1994(1) C.C. Cases 105 (HC).

6 2024: DHC : 4395.

7 2019 [4] JCC 3423.

8 2009(1) RCR (Criminal) 403.

9 2014 (3) LRC 377 (Del).

10 2011 [3] JCC 1687.

11 1994 CRI. L. J. 3792.

12 185 (2011) DLT 479 (Delhi).

13 1994 CrI. L.J. NOC 37 (ALL.).

14 (2009) 3 SCC 779.

15 1980 SCC (Cri) 159.

16 1996 (4) Crimes 233 (SC).

presumption u/Sec. 20 of the PC Act was not available to their benefit. It was contended that the prosecution was bound to prove foundational facts beyond reasonable doubt and for rebuttal of presumption, the accused was required to prove his defence only on the balance of probability. Ld. Counsel referred to the various DD entries proved on record by DW3 and contended that there was sufficient material to show that the complainant had good reasons to implicate the accused falsely. It was vehemently argued by the Ld. Defence counsel that the accused was able to prove his defence on the balance of probability. Ld. Defence counsel relied upon the following judgments in support of the aforesaid contentions:-

(i) Punjabrao v. State of Maharashtra¹⁷;

(ii) State of Maharashtra v. Dnyaneshwar Laxman Rao Wankhede¹⁸;

(iii) P. Somaraju v. The State of Andhra Pradesh¹⁹;

(iv) Pyare Lal v. State²⁰;

(v) V. Kannan v. State Represented by the Inspector of Police²¹;

(vi) State of Lokayuktha Police, Davanagere v. C. B. Nagaraj²²;

75. Ld. Defence counsel questioned the sanction for prosecution granted by the Additional Commissioner of Police against the accused for two reasons, firstly, that the authority which granted the sanction was incompetent and secondly, that the authority did not apply its mind before granting sanction. It was contended that the sanction for prosecution was bad in the eyes of law for the aforesaid reasons and the accused was entitled

17 JT 2001 (5) SC 532.

18 2009 (4) RCR (Criminal) 217.

19 2025 (4) RCR (Criminal) 822.

20 I (2008) DMC 806.

21 2009 (4) RCR (Criminal) 212.

22 2025 (3) RCR (Criminal) 249.

to be acquitted. Ld. Defence Counsel relied upon the following judgments in support of the aforesaid contentions:-

(i) Mansukhlal Vithaldas Chauhan v. State of Gujarat²³;

(ii) State of T.N. v. M.M. Rajendran²⁴

(iii) Joginder Singh Malik v. CBI²⁵

(iv) Ram Krishan Prajapati v. State of U.P.²⁶

(v) Davinder Singh v. State²⁷

76. The reports of experts i.e. PW-8 and PW-16 were challenged by the Ld. Defence Counsel on the grounds that - there was no proof that the custody of the exhibits was proper because chain of custody was not proved by the prosecution; the reports of experts were unreasoned; the experts were not competent to furnish the reports because they were lacking requisite qualification; and that the voice report was based on mere probability. It was contended that the expert reports given by PW-8 and PW-16 were not reliable and the accused was entitled to the benefit of doubt on that account as well. Ld. Defence counsel relied upon the following judgments in support of aforesaid contentions:-

(i) Jahan Singh v. CBI-The State²⁸;

(ii) State of Uttar Pradesh v. Hansraj @ Hansu²⁹;

(iii) State of Rajasthan v. Daulat Ram³⁰;

(iv) Ram Singh and Others v. Col. Ram Singh³¹;

(v) Ajay Gupta v. State Thr. CBI ³²

(vi) Narayan Yadav v. State of Chhattisgarh³³;

²³ JT 1997 (7) S.C. 695.

²⁴ 1998 SCC (Cri) 1000.

²⁵ 2022/DHC/005401 ²⁶ 2000 SCC (Cri) 687.

²⁷ MANU/PE/0265/1974.

²⁸ 2020 (2) RCR (Criminal) 795.

²⁹ 2018 (4) RCR (Criminal) 813.

30 1980 SCC (Cri) 683.

31 AIR 1986 SC 3.

32 295 (2022) DLT 182.

33 2025 (3) RCR (Criminal) 706.

(vii) P. C. Mishra v. Central Bureau of Investigation³⁴;

(viii) Nilesh Dinkar Paradkar v. State of Maharashtra³⁵;

(ix) Sudhir Chaudhary Etc. v. State (NCT of Delhi)³⁶;

(x) Mahabir Prasad Verma v. Dr. Surinder Kaur³⁷;

77. The call detail records relied upon by the prosecution were also challenged by the Ld. Defence counsel stating that the same were not proved as per law because the certificates u/Sec. 65B of the Indian Evidence Act provided alongwith the call detail records were defective. Ld. Defence Counsel relied upon the judgment of Hon'ble High Court of Delhi in Ashwani v. State³⁸ in support of the said contention.

78. The written arguments on similar lines, as above, were also filed on behalf of the accused which have been perused.

79. Rebuttal arguments were advanced by Ld. Sr. PP for the CBI stating that the contentions raised by Ld. Defence counsel were baseless and without merits. It was reiterated that all the witnesses to the verification and trap proceedings were reliable and they had corroborated each other on material particulars. Ld. Sr. PP contended that the sanction for prosecution was proper. The investigation was conducted thoroughly and reports of the expert witnesses were reliable. Prosecution vehemently argued that the foundational facts i.e. demand and acceptance of the bribe amount had been proved beyond reasonable doubt. Hence, prosecution was entitled to avail benefit of Section 20 PC Act which provides for presumption on the point of mens rea. Prosecution urged that the authority which had granted sanction for prosecution was competent. Provisions of the Delhi Police Act, 34 277 (2021) DLT 282.

35 (2011) 4 SCC 143.

36 AIR 2016 SC 3772.

37 AIR 1982 SC 1043.

38 CrI. A. No. 323/2018 decided by the Hon'ble High Court of Delhi on 08.10.2018.

1978 as well as the rules framed thereunder were referred to in order to show competency. The objection on validity of sanction was opposed on the ground that it should have been raised by the accused at the initial stage itself and he should not be allowed to raise it at the stage of final determination. Ld. Sr. PP relied upon the following judgments in support of his contentions:-

- (i) State of U.P. v. Zakaullah 39;
- (ii) State of Gujarat v. Raghunath Vamanrao Baxi⁴⁰;
- (iii) Sohrab and Ors. v. The State of Madhya Pradesh⁴¹;
- (iv) Mukut Bihari and Ors. v. State of Rajasthan⁴²;
- (v) L. Laxmikanta v. State by Superintendent of Police⁴³;
- (vi) C. S. Krishnamurthy v. State of Karnataka⁴⁴;
- (vii) Bharwada Bhoginbhai Hirjibhai v. State of Gujarat⁴⁵;
- (viii) Appabhai and Ors. v. State of Gujarat⁴⁶;
- (ix) Phula Singh v. State of Himachal Pradesh⁴⁷;
- (x) State of Andhra Pradesh v. C. Uma Maheswara Rao and Anr.⁴⁸;
- (xi) Raj Kumar v. State of Delhi 49;
- (xii) Nanji Govindbhai Sonagara v. State of Gujarat 50;
- (xiii) Madhukar Bhaskarrao Joshi v. State of Maharashtra 51;
- (xiv) K. C. Ramesh v. State of Karnataka 52;
- (xv) Dr. Subramanian Swamy v. Dr. Manmohan Singh and Anr.⁵³;
- (xvi) C. Chandrasekaraiah v. State of Karnataka⁵⁴

39 AIR 1998 SC 1474.

40 AIR 1985 SC 1092.

41 AIR 1972 SC 2020.

42 MANU/SC/0480/2012.

43 MANU/SC/0104/2015 44 AIR 2005 SC 2790.

45 AIR 1983 SC 753.

46 AIR 1988 SC 696.

47 AIR 2014 SC 1256.

48 AIR 2004 SC 2042.

49 MANU/DE/0941/2015 50 2012 CriLJ 1451.

51 AIR 2001 SC 147.

52 MANU/KA/2916/2014.

53 AIR 2012 SC 1185.

54 2015 CriLJ 3403.

80. In response to the contention regarding the stage at which sanction for prosecution could have been challenged, Ld. Defence Counsel argued that the accused was within his rights to challenge the sanction for prosecution at any stage. The judgment of Hon'ble Apex Court in State of Karnataka Lokayukta Police v. S. Subbegowda⁵⁵ was relied upon in support of the said contention.

Analysis and Reasons for Decision:

81. I have considered the rival contentions. Record has been perused.

Legal Provisions

82. The accused in this case has been charged for the offence punishable u/Sec. 7 of the PC Act. The said section reads as below:-

"7. Offence relating to public servant being bribed --

Any public servant who, --

(a) obtains or accepts or attempts to obtain from any person, an undue advantage, with the intention to perform or cause performance of public duty improperly or dishonestly or to forbear or cause forbearance to perform such duty either by himself or by another public servant; or

(b) obtains or accepts or attempts to obtain, an undue advantage from any person as a reward for the improper or dishonest performance of a public duty or for forbearing to perform such duty either by himself or another public servant; or

(c) perform or induces another public servant to perform improperly or dishonestly a public duty or to forbear performance of such duty in anticipation of or in consequence of accepting an undue advantage from any person, 55 2023 INSC 669.

shall be punishable with imprisonment for a term which shall not be less than three years but which may extend to seven years and shall also be liable to fine."

83. It is clear on the reading of Section 7 of the PC Act that in order to bring home the guilt for the said offence, the prosecution is required to prove 'obtainment' or 'acceptance' of 'undue advantage' by a 'public servant'. Such obtainment / acceptance should be 'with intention' to 'perform' or 'cause performance' of 'public duty' 'improperly' or 'dishonestly' or to 'forbear' or 'cause forbearance' to perform such duty.

84. Section 20 of the PC Act provides for presumption and reads as below:-

"20. Presumption where public servant accepts any undue advantage --

Where, in any trial of an offence punishable under section 7 or under section 11, it is proved that a public servant accused of an offence has accepted or obtained or attempted to obtain for himself, or for any other person, any undue advantage from any person, it shall be presumed, unless the contrary is proved, that he accepted or obtained or attempted to obtain that undue advantage, as a motive or reward under section 7 for performing or to cause performance of a public duty improperly or dishonestly either by himself or by another public servant or, as the case may be, any undue advantage without consideration or for a consideration which he knows to be inadequate under section 11."

85. The reading of Section 20 above makes it clear that once 'obtainment' is proved by the prosecution, it shall be presumed that the said obtainment of undue advantage was as a motive or reward for performance or forbearance to perform public duty.

86. The term 'obtainment' has been explained by the Hon'ble higher courts in several cases including in *Neeraj Dutta v. State (Govt. of NCT of Delhi)*⁵⁶. It was held by the Hon'ble Apex Court in the said case that 'obtainment' constituted 'demand' and 'acceptance' of bribe. It is thus required to be seen if the prosecution has been able to prove 'demand' and 'acceptance' of bribe by the accused beyond reasonable doubts.

Demand of Bribe Proved Facts: Unflinching Testimony & Corroboration

87. It is the case of prosecution that the accused had demanded a sum of Rs.24,000/- from the complainant in order to allow the 12 trucks operated by him to pass through Mundka during no entry timings.

88. The complainant himself had appeared in the witness box to prove the said demand. He was examined by the prosecution as PW-2. He proved the complaint Ex.PW2/A in his examination-in-chief, wherein he had specifically alleged about the aforesaid demand. The CBI had verified this complaint and the verification proceedings were proved by PW-2 as well as by PW-4/IW-1. The complainant specifically deposed that during verification proceedings he had requested the accused to reduce the bribe amount which was not acceded. Complainant has also deposed that he had requested the accused to allow him to send the bribe amount through his driver the next day, but this request too was rejected by the accused, who directed the complainant to come and deliver the bribe amount personally. This version of PW-2 is corroborated from the version of PW-4/IW-1, who is the decoy witness/shadow witness. He had accompanied PW-2 to the spot on the day of verification. IW-1/PW-4 deposed that he had heard the 56 2022 SCC OnLine SC 1724 conversation that had taken place between the complainant and the accused. PW-11, the verification officer, deposed that both PW-2 & PW-4 had narrated about the aforesaid to him soon after the demand had been made and they both had corroborated each other. These facts are also recorded in the verification memo Ex.PW2/B which is a contemporaneous document.

89. The demand made by the accused to the complainant during conversation at the time of verification proceedings was recorded in the DVR through memory card marked as Q-1. This memory card was played in the Court at the stage of final arguments. The transcript of this conversation is available on Court record and relevant portion of the same, indicating demand, reads as below:-

" : - (Accused):

24 : 24 : (i ¢) £

24 : 12 No Entry ¥ 12 ¢ 24

TI f £

§

24 : £ : x

24 : ' " x ¢ : i ¢ :

24 : i ¢.... . : □

24 : x ¢ , §

24 : x« < x« : : ¢

¥ x ¥ > : ¥

f : £ £ £

₹ i ¢
 : £ : □
 □ :
 < £ : f □
 < □ : £□ :
 ° ¥ £□
 < □ : ¥
 □ :
 :
 : □ □
 10-11 : □ "

90. The aforesaid conversation between complainant and the accused on 07.02.2022 clearly reflects that the accused was demanding a sum of Rs.24,000/- from the complainant in order to allow his 12 vehicles to ply during the no entry timings. The aforesaid conversation also reflects that the accused had insisted that the bribe amount be delivered to him personally by the complainant.

91. The demand of bribe amount is also reflected in the conversation pertaining to the trap proceedings which was recorded in Q-2. The said memory card was played in the Court and transcript of that conversation is part of Ex.PW2/H. The relevant portion reflecting demand from the complainant reads as below:-

" : (Accused): '
 : : (i ¢) £
 : : 12 : 24
 : □ : £ 24
 : Discount : TI °
 † ¢ : TI ° TI ° ¥ □
 ° □ : TI i ¢ : □

 : ¥ ¤ : £ †
 > : £ >
 : : < £ :
 : ¥ ¥ † □ : £
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 21 : 22 > £ □ ‡ <
 : : :
 : < £ □ : < :
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: > < £□□ ¥ :

□ "

92. Complainant had deposed regarding the demand made during the trap proceedings in his testimony also. His testimony reflects that the complainant had requested the accused to reduce the demanded amount of Rs.24,000/- to Rs.22,000/- which the accused agreed to. The complainant thereafter handed over a sum of Rs.22,000/- to the accused. This amount had already been treated with phenolphthalein powder in order to lay the trap and catch the accused red handed.

93. The conversations recorded in the DVR corroborate the testimony of complainant (PW-2) in material particulars. The version of complainant is supported by the testimony of PW-4/IW-1 too. The call detail records are also consistent with the testimony of the complainant. These call detail records are Ex.PW5/A (Colly) and Ex.PW1/D (Colly). The complainant deposed that on 08.02.2022 (the day of trap), when he went to deliver the bribe amount to the accused alongwith the trap team, in order to catch the accused red handed, he had made two calls to the accused. The accused did not disclose about his location during the first call while during the second call he asked the complainant to meet him at the Mundka Red Light Metro Station. Ex.PW5/A (Colly) and Ex.PW1/D (Colly) clearly show that two calls were actually made by the complainant to the accused on 08.02.2022 at 14:56:56 and 15:32:11. The mobile number of the complainant which was used to make these calls is 9873101900 and mobile number of the accused on which the calls were made is 9350902268. Location of these two mobile numbers were also found to be near Mundka at the time of calls. The customer application forms with respect to the aforesaid mobile numbers which are Ex.PW5/A (Colly) and Ex.PW1/B (Colly) sufficiently prove that the aforesaid mobile numbers were registered in the name of the complainant and the accused respectively. These two documents thus lend credence to the testimony of the complainant.

94. The testimony of complainant is also corroborated by PW-14 who is owner of the Brezza Car from which the accused was apprehended & the bribe amount recovered. The Complainant (PW-2) had deposed that the demand and transaction of bribe amount on the day of trap i.e. 08.02.2022 had taken place inside the Maruti Brezza Car of Grey Colour. This Car belonged to PW-14. Ownership of the Car was proved by PW-26 who relied upon Ex.PW26/2 in support of his testimony. Ex.PW26/2 consist of the registration details of Brezza car make Maruti bearing No. HR-31S-1450 suggesting that the car was owned by PW-14. He deposed that on 08.02.2022 after 2:00PM/2:30PM he had handed over his Maruti Brezza Car to the accused on his request. Hence, it is clear that on 08.02.2022 after 2:30 PM the accused was having custody of the Maruti Brezza Car belonging to PW-14. Hence, probability that the accused was sitting in that car at the time of demand and transaction of the bribe amount increases and this lends additional credence to the testimony of complainant/PW-2.

95. The testimony of complainant is further supported by the report of PW-16 & testimony of PW-18. PW-16 is the Voice Examination Expert who had examined the conversations recorded in Q-1 and Q-2. PW-18 is the Senior Officer of the accused who had worked with him in Nangloi Traffic Circle and thus was in a position to identify his voice.

96. PW-16 proved the Voice Examination Report Ex.PW16/A which states that Q-1 and Q-2 contained the probable voice of accused. PW-18 identified the voice of accused in the Court when Q-1 and Q-2 were played in his presence. The complainant had identified the voice of his own & the accused in his testimony since he is the maker of Q-1 & Q-2. It is because the DVR through which Q-1 & Q-2 were recorded was being carried by him during the verification proceedings and the trap proceedings. The testimony of expert witness and senior officer of the accused regarding identification of his voice thus lends further credibility to the testimony of the complainant.

Minor Contradictions: Effect

97. Ld. Prosecutor contended that the unflinching testimony of PW-2 corroborated by the testimony of independent witnesses and the other supporting material, like, the call detail records, expert's report etc. strengthen the case of prosecution and are sufficient to prove demand of bribe amount by the accused.

98. Ld. Defence Counsel however vehemently opposed this contention of Ld. Prosecutor & contended that the testimony of the complainant was full of contradictions. Further, the testimony was not corroborated by independent witnesses and they had rather contradicted each other on material particulars while deposing in the Court. Various contradictions were pointed out by the Ld. Defence Counsel from the testimony of the complainant & the independent witnesses. These included as follows: (i) the complainant failed to disclose the date & time of first demand & did not show any authority letter to support his case that he was authorized to operate the trucks; (ii) the prosecution did not prove that the DVR and memory cards allegedly used in voice recordings were issued by the concerned department of CBI; (iii) the CBI did not take official vehicle while going for verification proceedings; (iv) Q-1 and Q-2 as well as the DVR were not deposited in the Malkhana timely; (v) the complainant could not tell registration number of the vehicle in which the team had travelled to the spot; (vi) the verification officer was not empowered to take any other officer to the spot because it is not so reflected in the endorsement of the SP on the complaint Ex.PW2/A at point B; (vii) there are contradictions in the testimony of team members on the point of time at which they had reached Mundka; (viii) there are contradictions regarding recording of introductory voice of the complainant in the memory cards; (ix) presence of PW-4 on the spot is doubtful because there are contradictions in his testimony regarding the calls made by him to the CBI officials; (x) there are contradictions regarding the sealing of DVR; (xi) there are contradictions in the testimony of complainant on the point of signing of the verification memo twice on the last page which shows that the document is ante dated; (xii) there are again contradictions on the point of time spent in preparing the pre-trap memo; (xiii) there are contradictions on instructions given regarding negotiating the reduced amount; (xiv) there are contradictions as to who applied phenolphthalein powder on the currency notes; (xv) the pre-trap memo was signed by the complainant as per his own testimony with malkhana stamp over it, which was possible only if the document was ante-time; (xvi) the complainant deposed that he was supposed to meet the accused at 11:00 AM for delivering the bribe amount but he went in the after noon thereby suggesting that the complainant was deposing falsely regarding delivery of the bribe amount; (xvii) the call detail records were not proved as per law because the certificate u/Sec. 65B of the Indian Evidence Act was not drafted properly and was filed only by putting particulars in the already existing proforma; (xviii) the report

of the voice expert was not reliable because he admittedly did not possess requisite qualification regarding voice examination; (xix) the voice sample was not taken as per the judgment of Hon'ble Apex Court in Sudhir Chaudhary (supra); (xx) the spectrograph report was not attached; (xxi) the chain of custody of exhibits was not proved; (xxii) there were contradictions regarding seizure of the Brezza car because PW-2 & PW-4 deposed that the car was seized, PW-14 deposed that he had seen the car in the office of CBI but PW-15 denied these claims completely, stating that the car was never seized in this case; (xxiii) the washes were not taken in the presence of PW-2 and other witnesses because their signature on the samples were not there; (xxiv) signatures on the samples were proved in a leading form by showing the same to PW-4, 6 and 11 first and thereafter putting the question; (xxv) the transcripts of Q-1 and Q-2 as well as voice identification proceedings were not proved as per law.

99. It is the settled law that testimony of witnesses is required to be appreciated as a whole and not in parts. It is also the settled law that the Courts are not to adopt a hair splitting tendency while appreciating the oral testimony of the witnesses. The testimonies cannot be broken down in meals & pieces. Not every contradiction is worth considering. The Courts are required to assess the testimonies keeping broader probabilities in mind and ignore minor improvements and contradictions which do not go to the root of the matter. Only such contradictions, which pertain to material particulars, are to be given due attention. If the contradictions do not pertain to material particulars, the same should be ignored. It is the known fact that witnesses depose on the basis of their perception of the events that unfolded in front of them. Our memories are not infallible and people are bound to forget minute details with lapse of time. These are the prime reasons why contradictions occur in the testimony of eye-witnesses on events related to the same facts. So long the witnesses have corroborated each other in material particulars, they are to be considered as credible and their testimonies cannot be thrown out merely because of the minor contradictions, like, on the point of exact time taken in conducting the proceedings, time taken to reach at the spot, the number of vehicles in which the team had travelled, signing of various documents etc.

100. The contradictions pointed out by the Ld. Defence Counsel in the testimony of material witnesses are minor and do not go to the root of the matter. The witnesses who were part of verification/trap team have categorically deposed that the verification proceedings were conducted on 07.02.2022 and trap was carried out on 08.02.2022. They have also broadly corroborated each other on the procedure that was followed for carrying out the verification proceedings, pre-trap proceedings and post-trap proceedings. Their testimonies are in sync and corroborated by the contemporaneous documents, like the verification memo and the recovery memo. In such circumstances, the witnesses cannot be held incredible merely for the reasons that there are minor inconsistencies in their testimonies.

101. Regarding seizure of Brezza car, PW-15 deposed that the car was not seized in this case. PW-2 & PW-4, on the contrary, said that the car was seized. It is not reflected from the testimony of PW-2 & PW-4, if they understood the legal meaning of seizure. Seizure for them may have meant taking possession of the vehicle which indeed was taken because allegedly the accused had hit Insp. Anil Kumar, one of the members of the trap team, by accelerating the Brezza car and escaping from the spot. A FIR (Mark PW15/A) was registered at PS Mundka in this regard on the basis of complaint

(Mark PW15/B) and the Brezza car was given to the police officials of PS Mundka. In such a scenario, this contradiction in the testimonies of PW-2, PW-4 and PW-15 is immaterial & insufficient to shake foundation of the present case.

102. PW-14 deposed that he had seen his Brezza car in the compound of CBI. He was re-examined by Ld. Sr. PP for the CBI on this aspect during which he deposed that no registration number had been issued for his car till 08.02.2022 and therefore it was not possible for him to identify his car with certainty. He deposed that he saw a grey colour Maruti Brezza car standing in the compound of CBI and thought that it was his car. Hence, sufficient explanation was given by PW-14 regarding the contradiction which thus lost significance. Even otherwise, ownership of PW-14 over Brezza car was proved by exhibiting the registration certificate. His testimony, alongwith the testimony of PW-2, PW-4, PW-6, PW-11 and PW-15, proves that the Brezza car was in the custody of accused on the day of trap i.e. 08.02.2022.

103. There is hardly any contradiction on the aspect of timing at which the complainant had gone to deliver the bribe amount to the accused. It is not the case of complainant that he had promised to go at a particular time and had actually gone to deliver the bribe amount at that time only. The complainant accepted that though he had promised to go at 11:00 AM but he went after 03:00 PM. It is understandable because before sending the complainant to the spot, preparations for laying the trap were made. The transcripts Ex.PW2/F and Ex.PW2/H corroborate the complainant because these reflect that the complainant though had promised to go at 11:00 AM but he went to deliver the bribe amount after 3:00 PM. The time at which complainant went to the spot to deliver the bribe amount is also reflected in the Call Detail Records [Ex.PW5/A (Colly)]. The fact that the complainant had promised to go at 11:00 AM but went after 3:00 PM is hardly of any consequence. The testimony of PW-2 and other witnesses is consistent on this aspect and does not favour the defence in any manner.

104. The plea taken by the defence that the call detail records were not proved as per law because admittedly the certificates u/Sec. 65B of the Indian Evidence Act furnished by PW-1 & PW-5 were filled in already drafted proforma, is also inconsequential. Both PW-1 & PW-5 were cross-examined on this aspect. They deposed that the proformas were available in their office computer because these had been drafted by their legal team. I do not find anything wrong in using proforma in order to draft the certificate as per language required by the law as long as the person drafting it understands the meaning and implications. No such fact was brought out during the cross-examination of PW-1 and PW-5 that would suggest non- understanding of the meaning and context of the language by these witnesses.

105. Ld. Defence Counsel relied upon the judgment of Hon'ble High Court of Delhi in Ashwani (Supra) to contend that filling up a certificate u/Sec. 65B of the Evidence Act in a proforma would render the electronic evidence inadmissible. I have gone through the said judgment of Hon'ble High Court. In the said case the Hon'ble High Court refused to accept the certificate u/Sec. 65B of the Indian Evidence Act because the person proving the certificate had deposed that he had no technical knowledge of the master server, its operation or maintenance etc. It was in this background that the Hon'ble High Court had held that the certificate u/Sec. 65B of the Indian Evidence Act furnished by

the witness was not admissible. In the present case, no question was put to PW-1 or PW-5 which would suggest lack of knowledge of the master server on their part. PW-1 in fact categorically deposed that he had been provided an exclusive key to obtain data from the master server, thereby reflecting that he was dealing with the server in some capacity. In such a scenario, the certificates furnished u/Sec. 65B of the Indian Evidence Act by PW-1 & PW-5 cannot be discarded. These certificates are proper and hence the CDRs relied upon by the prosecution are admissible in evidence.

106. Coming to the report regarding voice examination, it is a matter of record that PW-16 admitted in his cross-examination that he did not hold any formal qualification in voice examination. However, he deposed that he had a vast experience in this field thereby indicating that he was a skilled person who acquired skills by experience and not by having a formal qualification. PW-16 is Government Examiner and his qualification to conduct voice examination cannot be challenged so lightly. He is working in a Government laboratory and doing voice examination regularly which itself is sufficient to assume that he must be having requisite expertise. I understand that during his cross-examination PW-16 also admitted that his report was not supported by spectrographic examination sheets. It is the settled law that testimony of an expert is of an advisory nature. The Court can decide whether to accept the report furnished by an expert or not, only on the basis of reasons given by the expert in support of the conclusion drawn by him. In this case, the spectrographic examination sheets on the basis of which conclusion of similarity in the questioned and sample voice was drawn, are not available. Hence, there is hardly any material before this Court to hold if the report Ex.PW16/A furnished by PW-16 is reliable or not. This certainly puts the Court at caution and prompts it to look for corroboration.

107. Corroboration to the report of PW-16 is found in the testimony of PW-18. The said witness is a Senior Officer from Traffic Police who had worked with the accused. This fact is not disputed by the accused at all. PW-18 appeared in the Court and identified the voice of the accused in Q-1 as well as Q-2. He also identified the transcripts of Q-1 and Q-2. He categorically deposed that these transcripts were made in his presence. These transcripts are Ex.PW18/2 and Ex.PW18/3. These are identical to Ex.PW2/F and Ex.PW2/H. The accused did not challenge PW-18 on the aspect of his capacity to identify the voice of accused and only a few suggestions in this regard were given. The testimony of PW-18 is corroboratory to the testimony of PW-16 and both these testimonies together, along with the testimony of PW-2 who is the maker of Q-1 and Q-2, are sufficient to prove that the questioned voices in Q-1 and Q-2 are that of the accused. The prosecution has proved Q-1 and Q-2 as per law laid down by the Hon'ble Supreme Court in Ram Singh (Supra) holding as below:-

"32. Thus, so far as this Court is concerned the conditions for admissibility of a tape-recorded statement may be stated as follows:

- 1) The voice of the speaker must be duly identified by the maker of the record or by others who recognise his voice.

In other words, it manifestly follows as a logical corollary that the first condition for the admissibility of such a statement is to identify the voice of the speaker. Where the voice has been

denied by the maker it will require very strict proof to determine whether or not it was really the voice of the speaker.

2) The accuracy of the tape-recorded statement has to be proved by the maker of the record by satisfactory evidence-direct or circumstantial.

3) Every possibility of tampering with or erasure of a part of a tape-recorded statement must be ruled out otherwise it may render the said statement out of context and, therefore, inadmissible.

4) The statement must be relevant according to the rules of Evidence Act.

5) The recorded cassette must be carefully sealed and kept in safe or official custody.

6) The voice of the speaker should be clearly audible and not lost or distorted by other sounds or disturbances."

108. The Ld. Defence Counsel sought to challenge the credibility of Q-1 and Q-2 by contending that (i) the custody chain was not proved by the prosecution as per law; (ii) the prosecution did not prove the date on which Q-1 and Q-2 along with the samples S-1 and S-2 were received in the laboratory; (iii) the prosecution also did not prove on which date the samples had been handed over to PW-16 and during the interim period with whom the samples were lying; (iv) the date of opening of the samples was not mentioned in the report of the expert either.

109. In order to appreciate these contentions, I have perused the testimony of PW-16 and his report Ex.PW16/1 once again. PW-16 categorically deposed in his testimony that Q-1, Q-2, S-1 and S-2 were received in the laboratory on 08.03.2022. This fact is reflected from Ex.PW16/DA (Colly) also. He further deposed that he had received the exhibits on 13.01.2023. This deposition was made by him on the basis of chain of custody sheets available in his file which he was carrying on the date of his examination. The witness further deposed that till 13.01.2023 the exhibits remained in the custody of Sh. Jayesh Bhardwaj, SSA Physical Division, CFSL.

110. Ld. Defence Counsel contended that Jayesh Bhardwaj was not examined by the prosecution in order to prove that the samples remained intact while those were in his custody.

111. In my considered opinion, the prosecution has sufficiently covered the issue of safe custody during the examination-in-chief of PW-16. This witness categorically deposed in his examination-in-chief in the second para at page 1 that when he received the parcels those were sealed with the seal of CBI and the seals were tallied with the specimen seal impressions. He also deposed that the seals were found intact. PW-16 was not cross-examined by the accused on this aspect at all. His testimony is sufficient to suggest that the samples were received by him in sealed condition and the seals of CBI were found intact. This suggests that samples remained in safe custody. The chain of custody does not remain an issue in such a scenario in my considered opinion.

112. So far missing signature on DVR, memory cards and other exhibits are concerned, it is a matter of record that these exhibits were identified by all the witnesses. Mere fact that signature of some of the witnesses are not available on the exhibits, is not sufficient to put their testimony under the cloud of doubts. Their testimonies corroborate in material particulars i.e. identification of the exhibits & the contents thereof. Hence, these cannot be brushed aside lightly.

113. The issue that the DVRs and the memory cards were not deposited in the malkhana timely, is also of no consequence because the brass seal used in sealing these articles was handed over to PW-4 immediately after putting the seal. PW-4 categorically deposed about this in his examination-in-chief and also produced the brass seal which was then taken on court's record. PW-4 is an independent witness. No reason has been shown by the accused why he would falsely implicate him. There is no averment regarding any previous enmity. PW-4 is an independent person in a Government job and totally unconnected to CBI. Ld. Defence Counsel, by showing Mark PW/DX to the independent witnesses, sought to prove that they were threatened with serious consequences to their service by showing this circular and thus were made to depose in favour of CBI. Such an argument is too far fetched. CBI is an independent agency and had no prior interface with the accused. There is no reason why CBI would do the unthinkable by first catching hold of a person and implicating him in a false case of demanding bribe and then threatening independent Govt. Officials by showing them Mark PW/DX in order to coerce them to depose in their favour. The testimony of PW-4 regarding custody of seal being with him is credible and reliable. The contention of defence challenging this credibility is devoid of merits.

114. The contention of Ld. Defence Counsel regarding non proving of authorization certificate in favour of complainant from the registered owners of the trucks is also too technical. It is the case of prosecution that the 12 trucks regarding which bribe was sought by the accused were owned by the family members of the complainant. This fact was sufficiently proved by the CBI by calling witnesses from the various transport departments where the trucks had been registered and proving that those were registered in the name of brother, sister-in-law and wife of the complainant. These witnesses from the transport department are PW-19, PW-22 and PW-25. PW-12 (brother of the complainant) himself appeared in the witness box and deposed that his brother i.e. the complainant was operating the trucks owned by him and his wife. There thus remains no doubt that the complainant was managing the transport business and operating trucks belonging to his family. PW-12 was questioned regarding genuinity of the fitness certificates related to the trucks. In fact, the accused examined witnesses like D-1, D-4 & D-5 to prove that the fitness certificates held for the trucks operated by the complainant were fake. However, this was not the issue in this trial at all. Even if the fitness certificates were not obtained as per procedure, this would have no bearing on the present trial which relates to demand and acceptance of bribe. This fact can only suggest that the trucks operated by the complainant were not plying on the roads of Delhi as per law. Such a fact would rather give an additional occasion to the accused to demand bribe for forbearance to perform his duty of booking the trucks for traffic violation. The facts aforesaid therefore rather support the prosecution.

115. Non-disclosure of the date of first demand in the complaint is also inconsequential because the demand otherwise also was sufficiently proved through verification & trap proceedings.

116. In my considered view, the contentions raised by the Ld. Defence Counsel to challenge credibility of the witnesses proving demand of bribe are devoid of merits for reasons aforesaid. The prosecution has been able to prove the first ingredient of the offence u/Sec. 7 of the PC Act, i.e. 'Demand of bribe' by the accused from the complainant, beyond reasonable doubt in view of the discussion made hereinabove.

Acceptance of Bribe

117. The second constituent of 'obtainment' to complete the offence prescribed u/Sec. 7 of the PC Act, is acceptance of the bribe amount by the accused. On this point also the prosecution has relied upon the testimony of PW-2 and PW-4. PW-2 categorically deposed that inside the Brezza car, after negotiating the bribe amount, he had handed over a sum of Rs.22,000/- to the accused. PW-4 corroborated PW-2 on this aspect by deposing that he was standing at some distance from Brezza car and could see that the complainant had handed over money to the accused inside the car. The cross-examination of PW-2 and PW-4 on this aspect did not yield much to the contrary.

118. Ld. Defence Counsel contended that PW-4 was not reliable and his testimony was not corroborating the testimony of PW-2. He contended so for two reasons. Firstly, because PW-4 was not inside the car but was standing outside. Hence, he could not have heard the conversation & cannot be said to have knowledge of the context in which money, if any, was handed over by the complainant to the accused. Secondly, PW-4 deposed in his testimony that he was standing at a distance of about 50 meters from Brezza car, which was a large distance and it was therefore not possible for PW-4 to see what was happening inside the car.

119. It is own case of prosecution that PW-4 had not heard the conversation that took place between PW-2 & the accused. Hence, PW-4 of course would not know in what context the money was handed over. PW-4 however categorically deposed that during pre-trap proceedings they were informed about the purpose of laying the trap and he was also made to go through the contents of the complaint Ex.PW2/A. Hence, PW-4 was aware of the reasons why complainant was sent to hand over money to the accused. His unawareness is merely limited to the actual conversation that had taken place inside the Brezza car. On that aspect, the transcript of Q-2 (Ex.PW2/H) is sufficient to corroborate the testimony of PW-2. Voice recording having been duly proved and compared with the transcript, no doubt remains that the money was handed over to the complainant to fulfill the demand of bribe being made by the accused.

120. So far the contention regarding distance is concerned, it is the claim of prosecution that PW-4 was standing at a distance of about 50 feet. The defence did not examine PW-4 to understand what he really meant when he said 50 meters and was he even aware how much distance 50 meter was. In such a scenario, the testimony of a witness cannot be belied merely because he deposed that he was standing 50 meters away. The witness categorically deposed that he was able to see what was happening inside the car and his testimony could not be shaken by the defence on that aspect. Hence, in my considered view, his testimony that PW-2 had handed over money to the accused inside the Brezza car is credible and can be relied upon. This testimony is also in corroboration with the transcript of Q-2 (Ex.PW2/H).

121. The tainted currency in the sum of Rs.22,000/- was recovered from the accused by the trap team consisting of PW-2, PW-4, PW-6, PW-11 and PW-15. These witnesses corroborated each other in material particulars regarding the recovery. The currency that was recovered from the accused is Ex.P-9 (Colly) / Ex.PW4/B (Colly). It was identified by all the aforesaid witnesses. The witnesses had also identified the pre-trap memo (Ex.PW2/C) in which unique numbers of the currency notes treated with phenolphthalein powder were mentioned. The numbers of currency notes recovered from the possession of the accused matched with the numbers mentioned in the pre- trap memo and those were single ticked. Testimony of none of the witnesses could be shaken by the defence on this aspect of recovery of Rs.22,000/- from the storage space of Brezza car at the pointing of the accused. The testimonies of eye-witnesses are in corroboration on this aspect so far material particulars are concerned.

122. All the aforesaid witnesses also deposed about recovery of Rs.2,000/- from PW-2. The unique numbers of these currency notes also matched with the numbers mentioned in the pre-trap memo and double ticked. PW-2 categorically deposed that Rs.2,000/- remained with him because on his insistence the accused had reduced the bribe amount from Rs.24,000/- to Rs.22,000/-. This fact regarding reduction of the bribe amount is also reflected in the transcript Ex.PW2/H, which reads as below:-

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:
: < £ □ □ : < <
:
: < : <
: □ Whatsapp £ □ ° £ <
£ ¥ £ £ : < < :
> < £ □ ¥ "

123. The complainant / PW-2 had made a request for reduction of bribe amount on the day of verification also which too is reflected in the transcript of Q-1 (Ex.PW2/F) in the following words:-

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TI
£ : £ □ : ✕
: ' " ✕ ¢ : i ¢
: : i ¢.... : □
□ : ✕ ¢ ,
24 24 f §
: ✕« : : ¢
✕« < □ : ¥
¥ > : £ £ £ ¥ ✕
f :
¥ < i ¢ :
□ < ✕« ' : ¢
f ✕« :

† ¢

: £

124. The aforesaid transcripts and testimony of PW2 clearly spell out the reason why Rs.2,000/- was recovered from the complainant. The recovery of Rs.2,000/- from the complainant is in complete consonance with the case of prosecution also and there is no reason for the Court to disbelieve the prosecution on this aspect.

125. The accused had handled the currency notes used for trapping him. This stands proved from the report of chemical examination of his right hand's wash. The report is Ex.PW8/1. Handwash of the accused was taken as complainant had alleged that he had handled the bribe money using his right hand. The wash was obtained by the CBI on the spot itself and was sent for chemical examination. The storage space from which money was recovered at the instance of the accused was also washed and was sent for chemical examination. The first solution was found to be light pink in colour while the second one was pink. The expert (PW-8) opined that there were traces of phenolphthalein in both the solutions thereby proving sufficiently that the accused had handled the treated currency.

126. The report of chemical examiner has been challenged by the defence on the grounds, that firstly, the custody chain of samples was not proved by the CBI and, secondly, that the process adopted for examining the samples was not elucidated in the report.

127. The aforesaid contentions of Defence are devoid of merits in my considered opinion. PW-8 specifically deposed during his examination that as per chain of custody sheet available in his file, the samples were delivered to him by one Suresh Chand Jat, PCO, CBI. The said custody sheet was available in the file of PW-8 that he carried to the Court but defence did not offer to bring it on record during their cross-examination. PW-8 specifically deposed in his examination-in-chief that the samples received by him were in sealed condition, bearing the seal of CBI and the seals were found to be intact. He was not cross-examined on this aspect by the defence. Merely because the person who carried the samples to CFSL was not examined is not sufficient to say that the chain of custody was not proved. Once PW-8 has deposed that seal of the sample that he received was found intact and the CBI had proved that the said seal was not available with any other person except PW-4, in my considered opinion, safe custody of the sealed samples stands sufficiently proved. In this regard, testimony of PW-4 can be referred again and is to the similar effect as discussed while discussing the chain of custody of Q-1, Q-2, S-1 and S-2.

128. The chemical examination report (Ex.PW8/1) specifically mentions at point no. 7 about the process (TLC) that was followed in examining the presence of phenolphthalein in RHW and SPW. PW-8 had also placed on record the worksheets related to the procedure carried out by him during his cross-examination in the Court. Worksheets Ex.PW8/D2 reflect that TLC (Thin Layer Chromatography) Examination was used to conduct the process. PW-8 admitted during his cross-examination that standard solution of phenolphthalein was required to be used to carry out TLC examination. The worksheets Ex.PW8/D2 reflect that standard phenolphthalein solution was indeed used to compare the results achieved during examination of RHW and SPW. It was on the basis of comparison with the result obtained with standard solution that the expert (PW-8) had

concluded that the solution contained phenolphthalein. The third sheet of Ex.PW8/D2 reflects examination done on standard solution and the first two sheets pertain to RHW and SPW respectively. The results are comparable because these suggest that the peak point in case of standard solution was achieved at 552.60 while in case of RHW and SPW it was 551.80 and 552.20 respectively. A comparison of the three sheets therefore clearly suggests that both RHW and SPW contained phenolphthalein.

129. Ld. Defence counsel contended that as per testimony of PW-8, admittedly, the silica gel plates used for carrying out TLC examination were not preserved and photographs of the examination results were not taken. Preservation of silica gel plates in each case may have financial implications for the laboratory, which thrives on public funds. The infrastructural requirement may also be an hindrance. Hence, preservation in each case may not be practically possible. Absence of photographs is also immaterial because worksheets reflecting the curve achieved by each solution are available on record. It will be too harsh to assume that an independent Government appointed expert will go beyond the ambit of his duties to prepare a report that was completely supportive of the case of prosecution. An expert is a neutral person. There is nothing on record to suggest that he had some direct or indirect interest in success of the case of prosecution. In case defence alleges so, it was for the defence to show reasons for the same which has not been done.

130. Ld. Defence Counsel, on the basis of cross-examination of PW-8, contended that it was an admitted fact that the chemical examination was carried out by one Bharat Bhushan, the Senior Scientific Assistant in the chemistry department, but the said person was not examined in the Court. While PW-8 admits to this effect in his cross-examination he also says that he too had carried out the chemical examination alongwith Bharat Bhushan and had signed the report thereafter. It is sufficient to reflect direct involvement of PW-8 in carrying out the chemical examination and the mere fact that he was assisted by a colleague who was not examined in the Court, is not sufficient to raise a doubt on his testimony.

131. Ld. Defence Counsel sought to challenge the trap proceedings reflecting acceptance of bribe amount by the accused on the strength of Rule 14.16 of the CBI (Crime) Manual-2005. It was contended that the said rule provides for videography and photography of the pre-trap and post-trap proceedings which was not done and hence the case of prosecution is doubtful. The said Rule reads as below:-

"14.16 As far as possible, the crime scene, steps during the course of investigation such as pre-trap and post-trap proceedings, search proceedings should be photographed as well as videographed. In case, the photographs are taken by conventional method, the negatives must be preserved. In the event of digital still photography and videography, the images may be downloaded/transferred, in the presence of witnesses, to a 'write only' compact disk (CD) or 'write only' digital video disk (DVD) for preservation. This would prevent the independent witnesses turning hostile during the course of trial. In all important cases of disproportionate assets/recoveries, search proceedings should also be videographed so that the Court may appreciate the evidence collected by CBI about the luxurious lifestyle of the

accused or the circumstances under which a particular recovery was made. A memorandum be prepared to this effect by the I.O. on the spot in the presence of witnesses."

132. Rule 14.16 does not make videography and photography of the pre-trap and post-trap proceedings mandatory. It provides that photography/videography be carried out only so far as it is practicable. On this point, I agree with the submissions of Ld. Prosecutor who contended that it was not possible to videograph or photograph the trap or recovery proceedings, firstly, because that would have made the accused conscious and chances of failure of the trap proceedings would have increased and secondly, because trap & recovery were carried out at a busy road under hostile circumstances as accused was attempting to escape. These reasons are sufficient to hold that photography/videography was not practicable & its absence therefore is not sufficient to doubt the case of prosecution.

133. The probability of accused being present on the spot on 08.02.2022 was proved by the prosecution through the testimony of PW-9, PW-10 and PW-13. These witnesses deposed that on 07.02.2022 and 08.02.2022 the accused was posted in Nangloi Traffic Circle and on those days he was on duty at the Mundka Red Light point. His availability on the spot at the time of verification proceedings and the trap proceedings was also proved by the said witnesses. They are official witnesses from the Traffic Department of Delhi Police and their testimonies cannot be doubted. Accused also did not throw any serious challenge to the testimony of these witnesses.

134. It is the case of prosecution that when the trap team was signalled by PW-2 regarding transaction of the bribe amount, they went near the Brezza car and asked the accused to come out. However, the accused accelerated the car and escaped. In that process, the accused had hit Inspector Anil Kumar who was part of the trap team and caused injuries in his hand.

135. Ld. Defence Counsel contended that case of the prosecution to this effect stood demolished because the prosecution did not prove accident or injuries by leading cogent and reliable evidence. It was contended that neither the medical report from Max Hospital, Vaishali, Ghaziabad was proved by examining any witness from the hospital nor the original report was placed on record. Since the report was only a photocopy, it was never admitted in evidence. Defence contended that Insp. Anil Kumar was also not produced in the witness box to prove the injuries caused to him.

136. In my considered view, the facts related to injuries caused to Insp. Anil Kumar are not directly in issue in this case. The medical report was referred by the prosecution to only show the conduct of the accused post- trap. The accused tried to escape when caught red handed and such a conduct of the accused is a relevant fact u/Sec. 8 of the Indian Evidence Act, 1872 as it points towards his culpability. This conduct was sufficiently proved through the testimony of PW-2, PW-4, PW-6, PW-11 and PW-15, well corroborated by the letter Ex.PW24/1 received by PW-24, the investigating officer, from Max Hospital, Vaishali, Ghaziabad, detailing the injuries caused to Insp. Anil Kumar and the treatment given to him on 09.02.2022, a day immediately after the day of trap.

137. Ld. Defence counsel had also sought to challenge the testimonies of prosecution's witnesses regarding recovery of tainted money (bribe) from the accused by averring, firstly, that before taking out money from the storage space of the Brezza car, the CBI team did not offer to give their personal search and secondly, that handwash of the complainant was not taken to prove that he had handled the tainted money.

138. The bribe money, as per the case of prosecution, was recovered on pointing out of the accused from the storage space inside the car and not from the person of the accused. None of the CBI officer was sitting inside the car before recovery of the bribe amount. Hence, non-offering of personal search by the CBI officers was hardly of any consequence.

Similarly, handling of bribe amount by the complainant is proved by PW-4, an independent witness, and therefore non-obtaining of his hand wash is also of no consequence. The testimony of PW-2/complainant regarding handling of bribe amount stood sufficiently corroborated from the testimony of PW-4. He has been found to be a reliable witness, because not only his testimony stands corroborated for various reasons already discussed hereinabove, he is an independent witness having no prejudice towards the accused to depose falsely.

139. Recovery of the bribe amount was further challenged by the Ld. Defence Counsel on the ground that the site plans were not proved by the prosecution as per law because maker of the site plans, namely, Inspector Satish Bana was not examined in the Court. Even if that be so, the site plans can only have corroborative value in some circumstances. Hence, despite ignoring the site plans, there is sufficient material on record which corroborates the testimony of complainant (PW-2). Absence of proper proof of site plans is thus of no consequence.

140. For reasons aforesaid, I am of the considered view that 'acceptance' of bribe amount by the accused has also been sufficiently proved by the prosecution beyond reasonable doubts.

Presumption regarding Mens rea

141. The prosecution has proved sufficiently that the accused had demanded an undue advantage, i.e. a sum of Rs.24,000/-, from the complainant and accepted a sum of Rs.22,000/- in lieu of the said demand. 'Demand' and 'acceptance' are two essential constituents to prove 'obtainment' of undue advantage. Once 'obtainment' is proved by the prosecution beyond reasonable doubt, a presumption arises in favour of the prosecution u/Sec. 20 of the PC Act. According to this presumption requisite mens rea i.e. obtainment of undue advantage as motive or reward to perform or forbearance to perform public duty shall be presumed.

142. Once such a presumption arises, reverse burden of proof operates and the onus shifts upon the accused to rebut the presumption. It is the settled law that a presumption can be rebutted by the accused on the basis of preponderance of probability and he does not have to prove his defence beyond reasonable doubts.

143. The accused did not lead any evidence to rebut the aforesaid presumption however. He examined 5 witnesses but only to prove that he was falsely implicated because he had been receiving threats from the Transporters' Association. Accused sought to prove that the trucks operated by the complainant did not fulfill the legal parameters regarding fitness certificate or registration.

144. These facts are hardly of any consequence because the accused failed to show any connection of the complainant with any of the Transporters' Association. He also could not connect the complainant with any of the threats that he had received in the year 2019 and 2020, as noted in the DD entries proved on record. It is already observed in the preceding paragraphs that the mere fact that the trucks were non-compliant on legal parameters is not sufficient to discredit the case of the prosecution. Non-compliance rather gave an additional occasion to the accused to demand the bribe in order to forbear performance of his public duty to stop such trucks from plying on the road and book them for violation of traffic rules.

145. The testimony of PW-21 is sufficient to prove that the Rohtak Road between Peeragrahi to Tikri Border (which also consists of Mundka area) was a no entry zone for heavy goods vehicles from 05:00 AM to 11:00 AM and from 05:00 PM to 7:00 PM. The accused was demanding money to allow the complainant to ply his trucks through Mundka during the prohibited timings. This stands sufficiently confirmed from the transcripts Ex.PW2/F and Ex.PW2/H which have already been quoted in the preceding paragraphs. Hence, not only presumption, rather there is clear evidence to suggest that the accused was demanding bribe as a reward for forbearing performance of his public duty.

146. The testimony of PW-18A and PW-20, who have proved the record regarding entry of trucks operated by the complainant through Tikri Border, also suggest that during the period when bribe amount was demanded, the trucks of complainant were not entering through Tikri border but through Dhasa Border, Darula Border and Bakargarh, all of which lie in south-west zone near Najafgarh. This again lends credence to the story of prosecution that the accused demanded money as a reward for forbearing performance of his public duty by allowing the trucks of the complainant to pass through Mundka and thus from Tikri border. The evidence on record strengthens the presumption in favour of prosecution and lends credibility to the case of prosecution.

147. The accuse has failed to rebut this presumption by leading cogent and reliable evidence. Rather the evidence led by the prosecution strengthens the presumption. This fulfills the third and last ingredient of the offence punishable u/Sec. 7 of the PC Act.

148. For discussion above, in my considered opinion the case of the prosecution, so far commission of offence punishable u/Sec. 7 PC Act is concerned, stands proved beyond reasonable doubts. The defence of the accused is lame and baseless. The accused has neither been able to prove false implication nor has been able to rebut the presumption u/Sec. 20 of the PC Act.

Public Servant and Requisite Sanction

149. It is clear from a reading of Section 7 of the PC Act that only a public servant can be convicted of the said offence. Section 19 of the PC Act provides that for prosecuting a public servant for the offence punishable u/Sec. 7, previous sanction of the competent authority is necessary. Section 19 reads as below:-

"19. Previous sanction necessary for prosecution (1) No court shall take cognizance of an offence punishable under sections 7, 11, 13 and 15 alleged to have been committed by a public servant, except with the previous sanction [save as otherwise provided in the Lokpal and Lokayuktas Act, 2013]-

(a) in the case of a person [who is employed, or as the case may be, was at the time of commission of the alleged offence employed] in connection with the affairs of the Union and is not removable from his office save by or with the sanction of the Central Government, of that government:

(b) in the case of a person [who is employed, or as the case may be, was at the time of commission of the alleged offence employed] in connection with the affairs of a State and is not removable from his office save by or with sanction of the State Government, of that government;

(c) in the case of any other person, of the authority competent to remove him from his office."

150. The accused never disputed that he was a public servant on the date of commission of offence. Even otherwise, this fact stands sufficiently established from the testimony of PW-3 who had proved the service record of the accused. The accused was serving in the rank of SI when he was arrested in this case. This fact is also proved by PW-3. Even otherwise, there is no dispute on any of these facts either.

151. The dispute is with respect to the sanction, which has been challenged by the defence mainly on two grounds: (i) that the sanction was granted by an incompetent authority; (ii) that the sanction was granted without application of mind.

152. It is the case of defence that the accused was promoted to the rank of SI by the Commissioner of Police. Hence, by virtue of Article 311 of the Constitution of India, it was only the Commissioner of Police who could have removed him from service. Since only the Commissioner of Police was competent to remove the accused, sanction for his prosecution u/Sec. 19 of the PC Act could also have been granted by the Commissioner of Police only and not by the Additional Commissioner of Police.

153. The accused relied upon his promotion order [Ex.DW2/A (Colly)] in support of his contention that he was promoted by the Commissioner of Police. This Order is dated 06.08.2019 and has been signed by the DCP (Establishment) for Commissioner of Police. It is the case of defence that since the Order has been signed by the 'DCP' for 'Commissioner of Police', it is the Commissioner of Police

who becomes the appointing authority.

154. The aforesaid contention of the defence can be examined by referring to the provisions of Delhi Police Act, 1978, and the Rules framed thereunder.

155. Section 6, Section 7, Section 8 and Section 12 of the Delhi Police Act, are relevant in this regard and read as below:-

"6. Commissioner of Police. - For the direction and supervision of the police force in Delhi, the Administrator shall appoint a Commissioner of Police who shall exercise and perform such powers and duties and perform such functions as are specified by or under this Act."

"7. Additional Commissioner of Police. - (1) The Administrator may appoint one or more Additional Commissioner of Police for the purposes of this Act. (2) The Additional Commissioner of Police shall --

(a) assist the Commissioner of Police in the exercise of his powers and the performance of his duties in such manner and to such extent, and

(b) exercise such powers and perform such duties of the Commissioner of Police and within such local limits, as the Administrator may, by general or special order, specify."

"8. Deputy, Additional Deputy and Assistant Commissioner of Police. - (1) The Administrator may appoint one or more Deputy Commissioner of Police or Additional Deputy Commissioner of Police or Assistant Commissioner of Police for the purpose of this Act. (2) Without prejudice to the other provisions of this Act and subject to any general or special orders made by the Administrator in this behalf, every Deputy Commissioner of Police or Additional Deputy Commissioner of Police or Assistant Commissioner of Police shall, under the order of the Commissioner of Police, exercise such of the powers (except the power to make regulations) and perform such of the duties of the Commissioner of Police and within such local limits as may be specified in such orders."

(Emphasis supplied) "12. Appointment of subordinate ranks. - Subject to such general or special orders in writing as the Administrator may make in this behalf, --

(a) Inspectors of Police may be appointed by the Additional Commissioner of Police; and

(b) Sub-Inspectors of Police and other officers of subordinate rank may be appointed by the Deputy Commissioner of Police, Additional Deputy Commissioners of Police, Principal of the Police Training College or of the Police Training School, or any other police officer of equivalent rank."

(Emphasis supplied)

156. The rules framed under Section 147(1) of the Delhi Police Act, 1978, are also relevant, specifically, the Delhi Police (Promotion and Confirmation) Rules, 1980 (hereinafter 'the promotion rules') and the Delhi Police (Appointment and Recruitment) Rules, 1980 (hereinafter 'the appointment rules').

157. The Rules 8 & 9 of the promotion rules read as below:-

"8. Constitution of Departmental Promotion Committee - Fitness of personnel for promotion to various ranks in different grades/cadres shall be judged by departmental promotion committees, which shall be constituted by the Commissioner of Police as under:

(i) For promotion of confirmed Constable to the rank of Head Constable, promotion of confirmed Head Constables to the rank of Asst. Sub-Inspector and promotion of confirmed Asstt. Sub-Inspector to the rank of Sub-Inspector, the promotion panel should be drawn by the Departmental Promotion Committee, consisting of one Joint Commissioner of Police and two Deputy Commissioner of Police to be nominated by the Commissioner of Police.

(ii) For promotion of confirmed Sub-Inspectors to the rank of Inspector. The promotion panel should be drawn by the Departmental Promotion Committee consisting of Special Commissioner of Police (Admn.) and two Joint Commissioners of Police to be nominated by Commissioner of Police."

"9. Centralized processing and issue of orders - Promotion of all categories in various ranks shall be done centrally by Police Head Quarters. After names have been approved by the concerned Departmental Promotion Committee, orders for promotion, when required shall be issued by the Deputy Commissioner of Police, (Estt.) in respect of Sub-Inspectors, Assistant Sub-Inspectors, Head Constables and Constables, and for Inspectors by Additional/Joint Commissioner of Police (HQ) as the appointing authorities."

(Emphasis supplied)

158. Rule 3(i) & Rule 4 (i) of the appointment rules are further relevant and read as below:-

"3. Definitions.

(i) "Appointing Authority" in relation to Inspector of Police means the Additional Commissioner of Police and in relation to the subordinate police officers below the rank of Inspector means the Deputy Commissioner of Police including the Additional Deputy Commissioner of Police, Principal/P.T.S. or any other officer or equal rank.

(ii) Competent authority means the Commissioner of Police or any other police officer specifically authorised by him under these rules to appoint a police officer of subordinate rank of Delhi Police. (ii-a) "Employees" means non-gazetted employees of the Delhi Police Force. (iii) Probation means of period of trial of a person appointed temporarily or in an officiating capacity against temporary or permanent post of a police of subordinate rank."

"4. General.

(i) Appointing authorities - The following authorities shall be competent to make appointment to various subordinate ranks of Delhi Police -

Class of Authority to The extent Police whom the of Officers power of delegation appointment is delegated

(i) Inspector Addl. C.P. Full powers subject to the rules framed hereunder.

(ii)	Sub-Inspr.	(i)	DCP	Do
		(ii)	Addl. DCP	
		(iii)	Principal/PTS	
		(iv)	Any other officer of equivalent rank.	
(iii)	ASI		Do	Do
(iv)	H.C.		Do	Do
(v)	Constables		Do	Do

159. On a combined reading of the aforementioned sections of the Delhi Police Act, the appointment rules and the promotion rules, it is clear that a DCP is appointed by the Administrator of GNCT of Delhi in order to exercise such of the powers and perform such of the duties of the Commissioner of Police as may be specified. This clarity comes from a combined reading of Section 6 & Section 8 of the Delhi Police Act. A DCP exercises the powers and performs the duties of Commissioner of Police by virtue of the aforementioned sections as per Delhi Police Act and the delegated legislation that consist of rules framed under the said Act; the Orders issued thereunder etc. Section 12 provides that a DCP is also the appointing authority for the members of Delhi Police in the rank of Sub-

Inspector, Head Constable and Constable. This is reiterated in Rule 3 & 4 of the appointment rules also. The promotion rules specify that the panel for promotion is to be drawn by the Departmental Promotion Committee (DPC) as specified in Rule 8. Once the names are approved by the DPC, Orders for promotion to the rank of SI & HC are required to be issued by the DCP, being the appointing authority.

160. It is clear from above that the Order Ex.DW2/A (Colly) was signed by the DCP in accordance with Rule 9 of the promotion rules, in his own independent capacity as appointing authority. The

DCP signed this Order for Commissioner of Police because as per the Delhi Police Act a DCP exercises such powers of Commissioner of Police as may be specified & Rule 9 is one such specific instance where power of Commissioner of Police has been delegated to the DCP. The DCP signed Ex.DW2/A (Colly) under delegated legislation and therefore had acted for Commissioner of Police however the power to sign this Order had been bestowed upon him by the sheer fact that he was the appointing authority as per Section 12 of the Delhi Police Act.

161. The defence did not prove by leading cogent and reliable evidence that the promotions were in fact approved by the Commissioner of Police. The office Notings pertaining to the promotion process adopted by the Police Headquarter was not proved on record either. Rule 8 & 9 of the promotion rules clearly provide that promotion shall be recommended by the DPC (Departmental Promotion Committee) and the promotion orders shall be signed by the DCP. The rules do not provide for any requirement of obtaining approval of the Commissioner of Police. Whether such approval was actually obtained, has not been proved by the defence. The presumption u/Sec. 114 of Indian Evidence Act, 1872 thus arises in favour of the prosecution that the official work was regularly performed, which means that it was performed as per Rule 8 & 9 of the promotion rules. This being so, DCP was the appointing authority of the accused even when he was promoted to the rank of SI and sanction granted by the Additional Commissioner of Police, who is higher in rank, is thus valid and has been granted by a competent authority.

162. The second contention of the defence that there was non- application of mind in granting sanction is also not substantiated from the record. PW-23 is the sanctioning authority who was cross-examined in detail by the accused. During cross-examination, the sanctioning authority had categorically deposed that he had received relevant documents along with the request for sanction. He was questioned if he had heard the audio recordings which he denied but deposed that transcripts had been received. PW-23 also denied having received the draft order. The transcripts of audio conversations are perfectly in tandem with the recordings which were played in the court also and were compared with the transcripts. Hence, the fact that audio recordings were not sent to the sanctioning authority is hardly of any consequence. No part of cross-examination of PW-23 reflects non-application of mind. The contention of Defence in this regard is therefore baseless and devoid of merits.

163. In my considered opinion the prosecution has been able to prove that the sanction for prosecution, which is Ex.PW23/1, was granted by a competent authority after due application of mind. The sanction is thus valid in the eyes of law.

Decision

164. For reasons discussed hereinabove, this Court is of the considered opinion that the prosecution has been able to prove all the necessary ingredients of the offence punishable u/Sec. 7 of the PC Act, beyond reasonable doubts. The accused has been found guilty of the offence punishable u/Sec. 7 of the PC Act and is therefore convicted accordingly.

Announced in the Open Court

on 09.03.2026

signed by

JYOTI

JYOTI KLER

KLER Date:

2026.03.23

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(Jyoti Kler)

Special Judge (PC Act) (CBI)-18, Rouse Avenue District Courts, New Delhi Certified that this judgment runs into 118 pages and all the pages have been signed by me. Digitally signed by JYOTI JYOTI KLER KLER Date:

2026.03.23 15:36:33 +0530 (Jyoti Kler) Special Judge (PC Act) (CBI)-18, Rouse Avenue District Courts, New Delhi